

Lease Agreement

This Agreement made and entered into between [REDACTED] (Legal Name of Owner), "Owner" and [REDACTED], (Name(s) of Resident(s)), "Resident".

is effective when fully executed by all parties. The Owner's obligation to deliver possession to Resident is conditioned on Resident making all payments due at or prior to move in under this Lease Agreement.

The following definitions apply throughout the Lease Agreement, except when these terms appear without quoted statutory language. In that case, the terms have the meaning intended by law.

Premises means entire property, i.e., the parcel of land and anything on it.

Building means the structure in which the Resident's rental unit is located.

Rental Unit means the area to which the Resident has the exclusive right of possession.

The Parties Agree as Follows:

- 1. Rental Unit:** Subject to the terms and conditions of this Lease Agreement, Owner/Agent rents to Resident and Resident rents from Owner/Agent, for residential use only, the rental unit located at: [REDACTED] (if applicable), [REDACTED]. Garage/Carport [REDACTED] (if applicable)
- 2. Term:** The term of this Lease Agreement begins on 10/27/2025 and ends on 10/26/2026. Any holding over thereafter shall result in the Resident being liable to Owner/Agent rental damages equal to the 1/30th of the current market value of the rental unit per day until the rental unit is vacated or 30 days whichever is later. A "month-to-month" tenancy subject to terms and conditions of this lease agreement shall be created only if Owner/Agent accepts rent from Resident thereafter, and if accepted, tenancy may be terminated by Resident after service upon Owner/Agent of a written 30 day Notice of Termination. Except as prohibited by law, that month-to-month tenancy may be terminated by the Owner/Agent by service upon the Resident a written 60-day notice of termination of tenancy. However, Civil Code Section 1946.1 provides that "If any Resident has resided in the rental unit for less than one year", the Owner/Agent may terminate the tenancy by service upon the Resident of a written 30-day notice.

Resident(s) initials here: [REDACTED]

- 3. Rent:** Rent is due in advance on or before the first day of each and every month, at **\$1,425.00** per month, beginning on 11/01/2025 payable to [REDACTED] and delivered to the Leasing Center at [REDACTED]. Telephone number for above address is [REDACTED]. Any rent not paid by the 1st of the month will be considered delinquent. Owner/Agent is authorized to report payment histories, outstanding debts, and/or lease status to third parties including any credit bureau.

Rent for any partial month shall be prorated at the amount of 1/30th of the monthly rent per day. Resident(s) that move in after the 20th of the month will be required to pay the prorated rent for the current month and the next full month's rent on or before the move in date.

Payments made in person may be delivered between the hours of **9:00 AM** and **5:00 PM** on the following days of the week:

☒ Monday ☒ Tuesday ☒ Wednesday ☒ Thursday ☒ Friday ☐ Saturday ☐ Sunday

Acceptable methods of payment: ☒ Personal Check ☒ Cashier's Check ☒ Money Order ☒ ACH ☒ Credit/Debit Card ☐ Walk-In Payment System at Participating Locations

No cash will be accepted at the rental community.

- 4. Payments:** Owner/Agent may apply any payment made by Resident to any obligation of Resident to Owner/Agent regardless of dates or other direction from the Resident that accompanies any such payment. Any attempt to allocate a payment in any other way shall be deemed null and void, including the use or application of a restrictive endorsement or limitation on any check or other payment. If payment is made by mail the resident bears the risk of



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loss or delay of any payment made by mail and Owner/Agent must receive mailed rent payments on or before the due date, except as otherwise provided by law. If Resident chooses to deposit payment in night drop if available at the community, the Resident bears the risk of loss and Owner/Agent will not be liable for lost or stolen monies. In the absence of a signed acknowledgement that complies with Civil Code 1947.3, Owner/Agent will accept rent payments only from the Resident(s). Owner/Agent may require a separate signed acknowledgement for each rent payment made by a third party. Rent tendered by a Non-Resident shall be deemed rent tendered on behalf of Resident only and not on behalf of the Non-Resident. Should Owner/Agent elect to accept a payment that does not comply with this paragraph, this shall not be construed as a waiver of this provision. If Resident pays online, such payment shall be deemed to come from Resident regardless of the source of payment. Payment online may be rejected or returned by Owner/Agent during the pendency of any legal action, or anticipated legal action. Failure or refusal by Resident to cash Owner/Agent's rent refund check shall not defeat Owner/Agent's rejection for the rent being refunded.

5. **Change to Payment Method:** The Owner/Agent may refuse certain payment methods listed in the paragraph entitled "RENT" above, as the form a payment to cure a Three Day Notice to Pay Rent or Quit, Three-Day Notice to Perform Conditions and/or Covenants or Quit, a check passed on insufficient funds or dishonored for any other reason, or stopped payment and Owner/Agent may refuse certain methods for future rent payments thereafter.
6. **Security Deposit:** Prior to taking possession of the rental unit resident shall pay a total security deposit, in the amount of **\$1,000.00**. In most cases, a security deposit collected on or after July 1, 2024 may not exceed an amount equal to one month's rent. However, a owner who meets the following criteria may collect a security deposit in an amount equal to up to two months' rent: (1) the owner is a natural person, qualifying family trust, or a limited liability corporation in which all member are natural persons; and, (2) the owner owns no more than two residential rental properties that collectively include no more than four dwelling units offered for rent. Resident shall not use the security deposit to pay any month's rent. Under Civil Code 1950.5, Owner/Agent may withhold from the security deposit only such amounts as are reasonably necessary to remedy Resident defaults including, but not limited to, the following:
- i) The compensation of Owner/Agent for a resident's defaults in the payment of rent,
 - ii) The "repair damages to the premises, exclusive of ordinary wear and tear", caused by resident or by a guest or licensee of the resident.
 - iii) The "cleaning of the premises upon termination of the tenancy necessary to return the unit to the same level of cleanliness" it was in at the inception of the tenancy.
 - iv) To remedy future defaults by the resident in any obligation under the lease agreement to restore, replace, or return personal property or appurtenances, exclusive of ordinary wear and tear.

Except where a longer time is allowed by law, within 21 calendar days after Owner/Agent has regained possession of the rental unit, Owner/Agent shall furnish Resident a copy of an itemized statement indicating the basis for, and the amount of, any security deposit received and the disposition of the security deposit and shall return any remaining portion of such security deposit to Resident. Any remaining portion of the security deposit shall be returned in the form of a single check made out to all Residents listed above.

7. **Late Fees and Insufficient Funds:** If rent is paid after the **3rd** day of the month, there will be a late charge of **\$100.00** assessed. This late charge does not establish a grace period. The parties agree that the late fee is presumed to be the amount of damage sustained by the late payment of rent. It would be impracticable or extremely difficult to fix the actual damage sustained by the breach of the late rent payment. The parties further agree that the sum represents a reasonable endeavor by the Owner/Agent to estimate fair average compensation for any loss that may be sustained as a result of late payment of rent. Failure to pay this fee is a material breach of this Lease Agreement. If rent is not paid by the 1st, the Lease Agreement is in default even if the late charge is not assessed. Pursuant to California law, if Resident passes a check on insufficient funds, Resident will be liable to Owner/Agent for the amount of the check and a service charge of \$25.00. Resident shall replace dishonored payment with a money order, certified check or cashier's check.
8. **Guarantee:** Resident ☐ is ☒ is not required to have a Guarantor for the duration of the Resident's residency. If no box is checked, Resident is not required to have a Guarantor. The Guarantor shall be liable for rent and any damages, financial or physical, caused by the Resident, including all legal fees incurred by Owner/Agent in enforcing this Agreement. If a Guarantor is required, this Agreement will not take effect unless a fully executed guarantor agreement is attached.





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9. Rental Unit Availability: In the event the rental unit is not available on the move-in date due to a prior Resident holding over, or other cause not within the control of the Owner/Agent, Resident's damages will be limited to a return of security deposit, any holding or other deposits and any advance payment of rent.

10. Occupants: The rental unit shall be occupied only by the following named person(s):

			
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date

11. Guest(s): Except as otherwise provided by prior written agreement, any person who is not listed as an Occupant on this Lease Agreement is a Guest. A Guest may not stay in the rental unit for more than fourteen (14) consecutive days, or a total of twenty-one (21) days in a twelve (12) month period. At the discretion of the Owner/Agent, Guest(s) who overstay this limit may be required to go through the application process, and if approved, must sign a Lease Agreement. A guest who has not signed a Lease Agreement is not a "tenant" for the purpose of Civil Code Section 1947.12. Resident is responsible for any violation of this Lease Agreement by the Resident's Guests.

12. Unlawful Activity: Resident, Occupants and any guest or other persons under the Resident's control shall not

- i) on or near the premises engage in any:
 - a. criminal activity, including drug-related criminal activity. "Drug-related criminal activity" means the illegal manufacture, sale, distribution, use, or possession with intent to manufacture, sell, distribute, or use of a controlled substance (as defined in section 102 of the Controlled Substance Act (21 U.S.C. 802)).
 - b. act intended to facilitate criminal activity, including drug-related criminal activity,
 - c. acts of violence or threats of violence, including, but not limited to the unlawful discharge of firearms.
- ii) use the rental unit or premises or permit the rental unit or premises to be use by an person:
 - a. for, or to facilitate, criminal activity, including drug related criminal activity, engage in the manufacture, sale, or distribution of illegal drugs at any location, whether on or near premises and property or otherwise.
 - b. for an unlawful purpose as described in paragraph (4) of Section 1161 of the Code of Civil Procedure.
- iii) Engage in any criminal activity or criminal threat (as defined in subdivision (a) of Section 422 of the Penal Code), on or off the premises, that is directed at any Owner/Agent of the premises.

A SINGLE VIOLATION OF ANY OF THE ABOVE PROVISIONS SHALL BE DEEMED A SERIOUS AND MATERIAL VIOLATION OF THIS LEASE AGREEMENT. IT IS UNDERSTOOD AND AGREED THAT A SINGLE VIOLATION SHALL BE GOOD CAUSE FOR TERMINATION OF THIS LEASE AGREEMENT. Unless otherwise provided by law, proof of violation shall not require criminal conviction but shall be a preponderance of the evidence.

13. Policies for Easy Living:

- i) **Actions of Family Members and Guests:** Residents are responsible for the actions of their family members, guests and themselves and agree to reimburse Owner/Agent for any vandalism or damages caused by these





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parties. No one shall play or run in public halls, stairways, elevators, sidewalks, garages, laundry rooms, or parking areas.

- ii) **Bicycles, etc.:** All wheeled vehicles, including bicycles, skateboards, tricycles and motorcycles cannot be ridden across or parked on the sidewalks, grass or pool areas. These items cannot be stored in halls, walkways, stairways, laundry rooms, elevators, porches, patios or other public areas, except as specified by Owner/Agent.
- iii) **Balconies/Patios:** These areas should not be used for storage of any kind. Patios/Balconies are to be kept free of trash, debris, and unsightly furnishings. Only patio or lawn type furniture is permitted. The use of shades or awnings of any style or design is strictly prohibited. The use of exterior decorative lighting is only permitted between the periods of October 1st - January 5th. Resident shall refrain from shaking, hanging clothing, curtains, rugs, and other coverings and cloths outside of any part of the building. No clotheslines or drying racks may be used in the outdoor areas, balconies, patios, etc. without Owner/Agents prior written permission. Plants and other items may not be placed on balcony railings or ledges unless otherwise expressly agreed in writing as an addendum to the Lease Agreement.
- iv) **Garbage:** All garbage, papers, boxes or refuse are to be deposited in garbage containers that are provided by the Owner/Agent or government agency. All wet garbage must be wrapped and the lids replaced when the garbage has been placed in the container. Unsupervised minors are not permitted in or around the garbage dumpsters. Cardboard containers must be broken down before disposing of them. No furniture is to be left in the dumpster or other areas of the community. If your community participates in the "Composting System" a bin will be provided in your rental unit for use. Resident agrees to pay a \$15.00 replacement fee if the bin is lost or damaged at the time of vacating.
- v) **Plumbing:** Cost of repair or clearance of stoppages in waste pipes or drains, water pipes or plumbing fixtures caused by Resident's negligence or improper usage are the responsibility of the Resident. Resident shall reimburse Owner/Agent for these costs on demand. Water shall not be left running in the kitchen, bathroom, laundry room or elsewhere. All plumbing defects must be reported immediately. Do not put bones, corn, grease, rice, fruit skins, egg shells or pits in disposal. Do not put foreign objects in the toilet. If there is a Floodstop water detection device present, these devices must be plugged in at all times. Floodstop uses minimal electricity and will protect you against costly water damage in the event a washing machine overflows, at which time the device will cut the power to the machine and stop the water flow. Resident acknowledges that they will be held liable for all damages and costs incurred as a direct result of the device being unplugged.
- vi) **Landscaping:** If Resident's rental unit includes a backyard, Resident is responsible for the upkeep unless otherwise stated by Owner/Agent. If the upkeep includes sufficient watering, Resident shall perform this obligation in a manner consistent with state and local water use restrictions. Resident shall promptly advise Owner/Agent of any problems with the landscaping, including, but not limited to, dead grass, plants or tree limbs, insect infestation, discolored or yellowing foliage and insufficient irrigation or leaks. Resident may not delegate the responsibilities of this paragraph to any person, including a contractor or other landscaping professional. Resident may not alter the landscaping around or near rental unit, or engage in "personal agriculture" without Owner/Agents prior written permission.
- vii) **Laundry Rooms:** These rooms are provided for the Residents' convenience. All equipment is used by the Residents with the understanding that the Owner/Agent does not assume responsibility for failure of this equipment to perform properly or for damage to clothes as a result of its use. Owner/Agent is also not responsible for any injury to a Resident, guests or visitors by reason of use of the equipment. Cooperation with other Residents is requested in use of these rooms. Owner/Agent is not responsible for any clothing or articles stolen, damaged or left in the room.
- viii) **Maintenance Requests:** All request for maintenance and repairs shall be made with the Leasing Center during business hours or online (if applicable). Resident may not make repairs or hire or allow any third party to perform work in the rental unit without Owner/Agent's prior written approval. After hours maintenance emergencies are to be reported to the answering service or on call maintenance number. All residents are requested to report to Owner/Agent any instance where an employee is discourteous or neglects their duties toward the resident at any time.
- ix) **Parking:** Each Resident may be assigned one carport or garage with a maximum of 2 cars per rental unit; any other Resident vehicles are to be parked on city streets. Garage must be used for parking vehicles and not for storage. If the garage is a two-vehicle garage and resident has two vehicles both vehicles must be parked in the garage unless prior written approval by Owner/Agent was obtained. Resident shall only use





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assigned parking spaces and shall ensure that guests park only in unassigned areas or designated guest parking areas. The Owner/Agent may require Resident to move Resident's vehicle(s) and all personal property to another comparable Parking Space/Garage on the property. Such a request is not a severance of a housing service, and Resident shall comply promptly. The Parking Space/Garage may not be sublet or assigned by Resident. Residents may not switch spaces with any other resident without prior written permission of the Owner/Agent. Resident may not use any parking space for recreational vehicles, trailers, boats, campers or similar non-passenger vehicles. The Parking Space/Garage must be used for parking vehicle(s) only. It may not be used for living, sleeping, eating, working, construction, growing plants or any other activity. Resident may not use any parking space/garage to wash or repair vehicles, to change oil in vehicles or for any purpose other than parking. Resident agrees to move the vehicle and cooperate fully with the Owner/Agent so that repairs or alterations to parking or other areas can be made in as expeditious and efficient a manner as possible. Resident shall ensure that posted and designated fire zones or "No Parking" areas remain clear of vehicles at all times. Resident shall refrain from parking in unauthorized areas or in another resident's designated parking space. (Vehicles parked in unauthorized areas or in another resident's space may be towed away at the vehicle owner's expense.) Only currently registered vehicles may be parked on the property. Vehicles with PNO (Planned Nonoperation) status may not be parked or stored on the property. A vehicle that lacks an engine, transmission, wheels, tires, doors, windshield, or any other major part or equipment necessary to operate safely on the highways, is subject to tow under California Vehicle Code 22658. Vehicles parked in violation of local laws/ordinance are subject to tow. Vehicles that are leaking fluids (e.g. oil, coolant, transmission fluid) may not be parked on the property. Any vehicle that is leaking fluids must be removed from the property immediately. Resident is responsible for the cost of cleaning and repair of any resulting damage from the leaked fluids. The maximum speed within the community will be ten (10) mph unless otherwise posted.

Resident(s) initials here: 

- x) **Pool/Spa Rules:** The Pool/Spa is to be used only between the hours of 9:00 A.M. and 10:00 P.M. **NO LIFEGUARD WILL BE ON DUTY.** Persons using the Pool/Spa facilities do so at their own risk. Owner/Agent is not responsible for accident or injury. Owner/Agent is not responsible for articles lost, damaged, or stolen. The pool is reserved exclusively for use of Residents of the community, Occupants listed on the Lease Agreement and their guests. Residents are limited to two (2) guests, regardless of age, per rental unit and guests must be accompanied by a Resident or Occupant when using the Pool/Spa. As provided by California law, children under the age of fourteen (14) shall not use the pool without an adult in attendance and unsupervised use of the Spa by children under fourteen (14) is prohibited. No food may be served or eaten in or around the Pool/Spa area(s) at any time without Owner/Agent's consent. Refreshments must be served in unbreakable containers. No alcoholic beverages shall be served or consumed in or around the Pool/Spa area at any time. No person under the influence of alcoholic beverages is permitted in or around the Pool/Spa area. Running, jumping, fighting, "horseplay", boisterous or dangerous conduct, and/or any noisy behavior disturbing to the other residents, is forbidden in or around the Pool/Spa. To protect the enjoyment of the pool, spa and pool area by all residents, use of radios, music players and other music or noise amplifying devices of any type is prohibited in the pool area unless with appropriate earphones. Residents and guests are required to be properly attired at all times, going to and from and in or around the Pool/Spa area. No cutoffs, jeans, shorts or cotton shirts will be allowed in the Pool/Spa. Showering is required prior to using the Pool/Spa. Those using the Pool/Spa shall dry themselves off before leaving the Pool/Spa area. Residents and guests will place their own towels over Pool/Spa furniture when using suntan oil or other lotions. No pool rafts, floats, water toys or any other objects whatsoever are allowed in the Pool/Spa at any time. Safety equipment is not be used except in case of an emergency.
- xi) **Quiet Enjoyment:** Resident and Resident's guest(s) shall not violate any criminal or civil law, ordinance or statute in the use and occupancy of the premises, commit waste or nuisance, annoy, molest, use foul or abusive language or interfere with any other neighbor, employee or person on the premises or neighboring property. Any such action may result in the immediate termination of this Lease Agreement as provided herein and by law. Resident shall refrain from creating, or allowing to be created, any noise that is disturbing to other residents. Resident is also responsible for compliance with any local noise ordinance. The hours of



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10:00 P.M. to 7:00 A.M. are considered quiet time and moving in or out of the rental unit is prohibited during this time.

Resident(s) initials here: 

- xii) **Recreation Area:** Residents are always responsible for the conduct of their family members and guests. Adult supervision (a person 18 years or older) of minor family members or guests under the age of 10 is required of all play areas, recreation rooms. No more than two (2) guests per household and must be accompanied by a Resident. All recreational facilities (playgrounds, exercise rooms, etc.) that may be available at this Community are available to the Residents, but these facilities do have inherent dangers to both adults and minors. All Residents using these recreational facilities and any playground equipment and all Residents on behalf of their minor family members and guests agree to assume all liability that is inherent with these recreational facilities and equipment and assume all responsibility for any damages done, or any injuries incurred while using these facilities and equipment and agree to hold Owner/Agent harmless for any injuries that may be suffered.
- xiii) **Roof Access:** Residents are not permitted access to the roof except in case of emergency.
- xiv) **Storage:** No storage of personal property outside of Resident's rental unit is authorized, permitted or provided under this Lease Agreement. Resident agrees to keep personal property inside Resident's rental unit, unless Owner/Agent has expressly agreed otherwise in writing in an addendum to this Lease Agreement. Resident shall refrain from storing gasoline, cleaning solvent or other flammable liquids in the rental unit, balconies or patios.

14. Personal Micromobility Devices: E-bikes, electric scooters, electric hoverboards or other personal micromobility devices may not be stored or charged on the premises, except as provided below.

As provided in Civil Code 1940.41 "[p]ersonal micromobility device" means a device with both the following characteristics: (1) It is powered by the physical exertion of the rider or an electric motor; and (2) It is designed to transport one individual, or one adult accompanied by up to three minors.

Resident may, as required by Civil Code 1940.41, "[s]tor[e] and recharg[e] up to one personal micromobility device in their dwelling unit for each person occupying the unit if the personal micromobility device meets the requirements in subparagraphs (i) or (ii) below. If the device only meets subparagraph (ii) below, it may be stored, but not charged in the dwelling unit.

- i) The device is not powered by an electric motor.
- ii) The device complies with the following safety standards: (1) For e-bikes, UL 2849, the Standard for Electrical Systems E-bikes, as recognized by the United States Consumer Product Safety Commission, or EN 15194, the European Standard for electrically powered assisted cycles (EPAC Bicycles) or (2) For e-scooters, UL 2272, for the Standard for Electrical Systems for Personal E-Mobility Devices, as recognized by the United States Consumer Product Safety Commission, or EN 17128, the European Standard for personal light electrical vehicles (PLEV).
- iii) The device is insured by Resident under an insurance policy covering storage of the device within the tenant's dwelling unit. Charging the device in the unit is prohibited if the device does not meet the safety standards in (ii) even if the device is insured by Resident as required in this subparagraph. Resident must provide such proof to Owner/Agent on demand.

Repair or maintenance of batteries and motors of personal micromobility devices is prohibited within the rental unit. However, a resident may change a flat tire or adjust the brakes on a personal micromobility device within the rental unit.

Notwithstanding the provisions above, any personal micromobility device must be stored in compliance with applicable fire code and in compliance with the Office of State Fire Marshall Information Bulletin 23-003 regarding lithium-ion battery safety, issued April 3, 2023, or any updated guidance issued by the Office of the State Fire Marshall regarding lithium-ion battery safety. The applicable bulletin is attached to this agreement.

15. Pesticides: California law requires that an Owner/Agent of a residential rental unit provide each new Resident a copy





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of the notice provided by a registered pest control company if a contract for periodic pest control service has been executed. The rental unit you are leasing or the common areas of the building are covered by such a contract for periodic pest control service, so you are being notified pursuant to the law. The notice provided by the pest control company is attached to this Lease Agreement.

16. Spare the Air Alerts: Many Air Districts have enacted "Spare the Air" programs, which prohibit certain activities, which may include burning wood, pellets, or manufactured fire logs when a "Spare the Air" Alert is issued. A map of California Air Districts, with the links to local information is available at: <http://www.arb.ca.gov/capcoa/dismap.htm>. Resident agrees that the Owner/Agent may provide Resident's name and address to the Regional Air District for the purpose of notifications and enforcement of the Spare the Air program. Nothing herein is deemed to be authorization of or consent by Owner/Agent to burn anything that is not authorized by this Lease Agreement. Resident shall

- i) obtain information about the restrictions specific to the District in which the premises are located.
- ii) ensure that Resident is aware of "Spare the Air" days
- iii) comply with all "Spare the Air" restrictions
- iv) be responsible for any "Spare the Air" fines or other costs occasioned by "Spare the Air" violations on the premises while the resident is in possession whether levied against Owner/Agent or Resident.

17. Political Signs: California law allows residents to post "political signs", subject to certain limitations. The term political sign" refers to any noncommercial sign, banners, flags, or posters. A "political sign" is one that relates to any of the following:

- i) An election or legislative vote, including an election of a candidate to public office.
- ii) The initiative, referendum, or recall process.
- iii) Issues that are before a public commission, public board, or elected local body for a vote.
- iv) Resident may only post, display or install political signs in the window or door of the rental unit by Resident in a multi-family dwelling rented by the Resident.
- v) Resident is prohibited from posting or displaying political signs that (1) are more than six square feet in size; (2) violate a local, state, or federal law; or (3) would violate a lawful provision in a common interest development governing document that satisfies the criteria of California Civil Code Section 1353.6.
- vi) Resident shall post and remove political signs in compliance with the time limits set by the ordinance for the jurisdiction where the premises is located. Resident shall be solely responsible for any violations of a local ordinance. If no local ordinance exists or if the local ordinance does not include a time limit for posting and removing political signs on private property, political signs may be posted 90 days prior to the date of the election or vote to which the sign relates and must be removed 15 days following the date of the election or vote.

Resident may not install or allow a political sign to be installed that causes any damage to or alteration of the premises such as drilling holes, nailing into outside walls, door frames, window sills, railings, etc.; or affixing tape or other sticky material in a way that will cause damage to paint or other finishes.

A Breach of this provision by the Resident shall be deemed a material breach of this Lease Agreement and grounds for termination of the Lease Agreement by the Owner/Agent.

18. Satellite Dishes: Under the rules of the Federal Communications Commission (FCC), Resident has a right to install a satellite dish and/or receiving antenna within the rental unit. Owner/Agent is allowed to impose reasonable restrictions relating to the installation and maintenance of the satellite dish and receiving antenna. Resident is required to comply with these restrictions as a condition of installing such equipment. Resident agrees as follows:

- i) **Size:** A satellite dish may not exceed 39 inches (1 meter) in diameter. An antenna or dish may receive but not transmit signals.
- ii) **Location:** A satellite dish or antenna may only be located inside Resident's rental unit, including in an area outside Resident's rental unit such as Resident's balcony, patio, yard, etc. of which Resident has exclusive use under the Lease Agreement. Installation is not permitted on any parking area, roof, exterior wall, window, fence or common area, or in an area that other residents are allowed to use. A satellite dish or antenna may not protrude beyond the vertical and horizontal space that is leased to Resident for Resident's exclusive use. Allowable locations may not provide optimum signal. Owner/Agent is not required to provide alternative locations if allowable location is not suitable.
- iii) **Safety and Non-Interference:** Satellite dish/antenna installation: (1) must comply with reasonable safety



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standards; (2) may not interfere with Owner/Agent's cable, telephone or electrical systems or those of neighboring properties. It may not be connected to Owner/Agent's telecommunication systems, and may not be connected to Owner/Agent's electrical system except by plugging into a 110-volt duplex receptacle.

- iv) **Outside Installation:** If the satellite dish or antenna is placed in a permitted area outside the rental unit, it must be safely secured by one of three methods: (1) securely attaching to a portable, heavy object; (2) clamping it to a part of the building's exterior that lies within Resident's rental unit (such as a balcony or patio railing) or (3) any other method approved by Owner/Agent. No other methods are allowed. Owner/Agent may require that Resident block the satellite dish or antenna with plants, etc., so long as it does not impair Resident's reception.
- v) **Signal Transmission from Outside Installation:** If a satellite dish or antenna is installed outside the rental unit, signals may be transmitted to the interior of Resident's rental unit only by: (1) running a "flat" cable under a door jam or window sill in a manner that does not physically alter the premises and does not interfere with proper operation of the door or window; (2) running a traditional or flat cable through a pre-existing hole in the wall (that will not need to be enlarged to accommodate the cable); or (3) any other method approved by Owner/Agent.
- vi) **Installation and Workmanship:** For safety purposes, Resident must obtain Owner/Agent's approval of (1) the strength and type of materials to be used for installation and (2) the person or company who will perform the installation. Installation must be done by a qualified person, or a company that has workers' compensation insurance and adequate public liability insurance. Owner/Agent's approval will not be unreasonably withheld. Resident must obtain any permits required by local ordinances for the installation and must comply with any applicable local ordinances and state laws. Resident may not damage or alter the premises and may not drill holes through outside walls, door jams, window sills, etc.
- vii) **Maintenance:** Resident will have the sole responsibility for maintaining a satellite dish or antenna and all related equipment. Owner/Agent may temporarily remove the satellite dish or antenna if necessary to make repairs to the premises.
- viii) **Removal and Damages:** Resident must remove the satellite dish or antenna and all related equipment when Resident moves out of the rental unit. Resident must pay for any damages and for the cost of repairs or repainting which may be reasonably necessary to restore the premises to its condition prior to the installation of Resident's satellite dish or antenna and related equipment.
- ix) **Liability Insurance and Indemnity:** Resident is fully responsible for the satellite dish or antenna and related equipment. Prior to installation, Resident must provide Owner/Agent with evidence of **Renter's Liability Insurance** to protect Owner/Agent against claims of personal injury to others and property damage related to Resident's satellite dish, antenna or related equipment. The insurance coverage must be no less than \$100,000.00 (which is an amount reasonably determined by Owner/Agent to accomplish that purpose) and must remain in force while the satellite dish or antenna remains installed. The rental unit address must be listed as the location of the Resident insured. Owner and Agent for Owner must be listed as Certificate Holder (i.e., a person entitled to proof of insurance). The carrier must provide 30-days' notice of cancellation, non-renewal or material change in coverage to the Owner/Agent. Resident agrees to defend, indemnify and hold Owner/Agent harmless from the above claims by others.

Resident(s) initials here: 

- x) **Deposit Increase:** A security deposit increase (in connection with having a satellite dish or antenna) is required by Owner/Agent. Resident agrees to pay an additional security deposit in the amount of \$50.00 to help protect Owner/Agent against possible repair costs, damages, or any failure to remove the satellite dish or antenna and related equipment at the time of move-out. A security deposit increase does not imply a right to drill into or alter the rental unit. In no case will the total amount of all security deposits Resident pays to Owner/Agent be more than that which is allowed by law (two (2) times the amount of rent for an unfurnished rental unit and three (3) times the amount of rent for a furnished rental unit).
- xi) **When Resident may begin Installation:** Resident may start installation of satellite dish or antenna only after Resident has: (1) provided Owner/Agent with written evidence of the liability insurance referred to in paragraph ix; (2) paid Owner/Agent the additional security deposit, if applicable, referred to in paragraph x; and (3) received Owner/Agent's written approval of the installation materials and the person or company who will perform the installation.



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19. Pets: No dogs, cats, birds, domestic rodents, reptiles, amphibians or other animals will be permitted in or about premises without Owner/Agent's prior written consent.

- i) Owner/Agent consents to Resident keeping the Pet described here as a "Pet": **None**
- ii) Resident is required to maintain **Renter's Liability Insurance** for the benefit of the Owner/Agent and the Resident throughout the duration of the residency as specified below. Resident must provide proof of such insurance to the Owner/Agent. Coverage of at least \$100,000.00 in personal liability (bodily injury and property damage) for each occurrence. The rental unit address must be listed as the location of the Resident insured. Owner and Agent for Owner must be listed as Certificate Holder (i.e., a person entitled to proof of insurance). The carrier must provide 30-days' notice of cancellation, non-renewal or material change in coverage to the Owner/Agent. Resident must obtain insurance prior to occupancy. Failure to comply with this requirement is a material violation of the Lease Agreement.

Resident(s) initials here: [REDACTED]

- iii) In the event of default by Resident of any of the terms of this Lease Agreement, Resident agrees, within three (3) days after receiving written notice of default from Owner/Agent, to cure the default or vacate the rental unit.
- iv) Resident agrees to comply with all ordinances, regulations and laws applicable to the Pet described above.
- v) Pet must be spayed or neutered.
- vi) If Pet is a fish, the water container shall not be over 10 gallons and will be placed in a safe location inside the rental unit.
- vii) Use of areas not in the exclusive possession of the Resident (such as walkways, stairwells, parking lots, grassy areas, or other interior or exterior common areas) for defecation and urination is prohibited unless specifically authorized by Owner/Agent in writing. The Pet may not be allowed to urinate or defecate on any unprotected carpet or flooring inside the rental unit. Any Animal waste shall be disposed of promptly and properly, by the Resident or someone at the Resident's direction and expense. Resident must provide and maintain an appropriate litter box inside the rental unit, if applicable.
- viii) The Pet shall be fed and the food stored inside the rental unit in a way that does not attract pests or cause damage.
- ix) Resident shall be responsible for any cleaning in common areas necessitated by the Pet, i.e., dirty footprints.
- x) Resident shall prevent fleas or other infestation of the premises and may be held liable for costs associated with any necessary remediation during the time of occupancy and upon move out.
- xi) The Pet shall be on a leash, in a carrier, or otherwise under Resident's supervision and direct control at all times when outside of the rental unit. The Pet may not wander or be left unattended on the grounds or in common areas. Domestic rodents, reptiles and amphibians, or birds, if allowed, must remain caged at all times.
- xii) Resident shall not permit Pet to, and represents that the Pet will not cause any damage, nuisance, or cause justified complaints, from any other resident, guest, or the public. For example, Pet may not make unnecessary and excessive noise, threaten injury or unwanted contact with others (i.e., jumping or lunging), bite, injure or contact others, cause property damage, or engage in aggressive behavior towards any person or the persons pet. Resident agrees Owner/Agent may revoke permission to keep Pet in the rental unit by giving Resident a thirty (30) day notice in writing. If at any time the Pet displays any violent behaviors, Owner/Agent may require the Pet to be removed immediately.
- xiii) If Pet is neglected or unattended, it will be reported to animal control, and any resulting costs will be Resident's responsibility.
- xiv) In the event Owner/Agent, contractor, or maintenance personnel need to access the rental unit, Resident shall ensure that the Pet will be appropriately confined or restrained so as not to create a threat or interfere with the task being performed.
- xv) Resident shall be liable to Owner/Agent for all damages or expenses incurred by or in connection with Pet, and shall hold Owner/Agent harmless for any and all damages or costs in connection with Pet.
- xvi) The following known violent breeds are not permitted at this community and by signing this Lease Agreement Resident declares that the Pet described above in Paragraph "i" is not of such breed whether purebred or mix: **Akita, American Bulldog, American Pit Bull Terrier, American Stafford Shire Terrier, Bull Terrier, Mastiff, Chows, Doberman, Dogo Argentino, Fila Brasileiro, Rottweiler, Presa Canarios, Shar Peis, Tosa Inu, Gull Dong, Cane Coso**



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20. Mold Prevention: It is our goal to maintain the highest quality living environment for our Residents. Therefore Owner/Agent has inspected the rental unit prior to occupancy and knows of no damp or wet building materials and knows of no mold or mildew contamination. Resident agrees to:

- i) keep the rental unit maintained and ventilated so that moisture does not accumulate. If moisture is allowed to accumulate in the rental unit, it can cause mildew and mold to grow;
- ii) to immediately notify the Owner/Agent of any dampness or mold problems including any leaks, moisture problems, and/or mold growth; any water intrusions such as plumbing leaks, drips, or "sweating" pipes, or overflows from the bathroom, kitchen, or rental unit laundry facilities, especially in cases where the overflow may have permeated walls or cabinets, and any significant mold growth on surfaces inside the rental unit;
- iii) to regularly allow air to circulate in the rental unit and to use exhaust fans (if available) whenever showering or bathing, cooking, dishwashing, or cleaning and to report to the Owner/Agent any non-working fan;
- iv) to use reasonable care to close all windows and other opening to prevent water from coming into the interior of the rental unit;
- v) to clean and dry and visible moisture on windows, walls, and other surfaces, including personal property, as soon as reasonably possible (mold can grow on damp surfaces within 24 to 48 hours);
- vi) to keep the rental unit free of dirt and debris that can harbor mold;
- vii) to notify the Owner/Agent of any problems with the air conditioning or heating systems that are discovered by the resident; and
- viii) to allow the Owner/Agent to enter the rental unit to inspect and make necessary repairs.

Resident agrees to indemnify and hold harmless the Owner/Agent from any actions, claims, losses, damages, and expenses, including, but not limited to, attorney's fees that the Owner/Agent may sustain or incur as a result of the negligence of the Resident or any guest or other person living in, occupying, or using the rental unit.

21. Utilities: Prior to taking possession of the rental unit Resident shall establish the following utilities in their name and shall be responsible for any related deposits, charges, fees or services, if any. (check only if applicable):

[N/A] Gas ☒ Electric ☐ Water ☐ Trash ☐ Sewer.

Properties with solar panels that will be installed or are already installed and are part of the Net Energy Metering program, although electricity service is established in residents name, any benefits from the solar panels are the property of and for the benefit of the Owner/Agent, usable at Owner/Agent's sole discretion. **If applicable to the property, there will be a separate Solar Addendum to this Lease/Rental Agreement that will provide all details regarding the solar panels, tracking, meter devices, billing system and requirements for the program.**

In the event Resident fails to timely establish electric utility/services (or utilities/services are transferred back to Owner Agent during the term) Owner/Agent may charge resident for all utility/service billed to Resident with respect to the rental unit and may charge a reasonable administration fee (for each month or part thereof) for billing of the utility/service in an amount not to exceed \$50 per occurrence.

Disconnection of utilities due to non-payment is a material violation of this Lease Agreement.

Resident shall not use common area utilities such as water or electricity for the Resident's personal use, without prior written permission from Owner/ Agent. Resident may not run extension cords from any portion of the rental unit (including the interior of the rental unit as well as any patio, porch, deck, garage or other outdoor areas that Resident has the exclusive right of possession to) or the interior of the building to the exterior of the building or rental unit for any purpose, without prior written permission from the Owner/Agent.

Resident shall pay for all utilities.

Resident agrees to the billing described below for each of the following utilities and services (check only if applicable): ☐ Hot Water/Gas Consumption ☒ Water ☒ Sewer ☒ Trash ☐ Electric (all of such checked utilities and services are collectively referred to as the "Utilities"). The responsibility for the utilities and services not checked above as well as for those utilities and services not specifically identified above shall be governed by the terms of the Lease Agreement. Resident's monthly rent does not include a charge for any of the above checked Utilities. During the lease term, Owner/Agent is authorized to bill Resident for, and Resident agrees to pay, a portion of the monthly bills



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for the Utilities for the Property as follows:

- i) During the lease term, Owner/Agent is authorized to bill Resident for, and Resident agrees to pay, a portion of the cost for usage of the Utilities at the Property allocated to the Rental Unit using one of the following methods.
 - a) If the rental unit **does not** have a water sub-meter installed, Resident will pay for water and sewer service based on an allocation formula, not actual meter reads. The water and sewer bills received by Owner/Agent from the local utility(ies) provider will be used to calculate the charges per rental unit based on an allocation method. Specifically, Resident's bill will be calculated in the following manner: the property's water and sewer bills will be allocated to each rental unit based on the square footage of the rental unit compared with the total amount of occupied square feet of all rental units at the community. Resident's bill will be equal to the calculated monthly square feet percentage of the rental unit multiplied by the properties total water and sewer charges.
 - b) If the rental unit has a water sub-meter installed, Resident shall pay for water service based on the rental unit's consumption measured by a sub-meter. Specifically, an rental unit's measured consumption will be multiplied by a rate based on the utility provider's rate and, or, bill. The monthly bill for water service will only include the following charges: (1) payment due for the amount of usage as measured by the sub-meter and charged at allowable rates, (2) fixed fee charged by the water purveyors for water service, (3) each monthly billing statement will include a billing service fee in an amount not to exceed the amount authorized by California Civil Code Section 1954.205(3), and (4) a late fee, if applicable.

Landlord will provide the location of Resident's sub-meter, calculations used to determine Resident's monthly bill, and the date Resident's sub-meter was last certified and the date it is next scheduled for certification (if known) upon inquiry. Resident shall notify Landlord of any leaks, drips, water fixtures that do not shut property, including, but not limited to, problems with water-saving devices. Upon notification of such problems, Landlord will investigate, and, if necessary, repair these problems within 21 days, otherwise, the water bill will be adjusted pursuant to law. To report leaks, drips, water fixtures that do not shut off properly, including but not limited to, a toilet, or other problems with the water system, including but not limited to the problems with water-saving devices, please contact the Leasing Center at [REDACTED]. If Resident believes that the sub-meter reading is inaccurate or the sub-meter is malfunctioning, the Resident shall first notify the Landlord in writing and request an investigation. If an alleged sub-meter malfunction is not resolved by the Landlord, Resident may contact the local county sealer and request that the sub-meter be tested. County sealer contact information is made available on the property website at [REDACTED].

The above is only a general overview of the laws regarding sub-meters. The complete law can be found at Chapter 2.5 (commencing with Section 19.54.201) of Title 5 of Part 4 of Division 3 of the Civil Code, available online or at most libraries.

- ii) All water and sewer related charges assessed to the property may be used to calculate the amount charged to Resident under the selected formula described above, including, but not limited to, drought surcharges and or penalties, storm water charges, water or sewer related charges contained on tax bills, and all miscellaneous charges contained on the utility bills received from the local water and sewer providers. In the event that the Owner/Agent is charged a per rental unit amount for water, sewer, water and sewer and/or electricity, the Owner/Agent may charge you the same per rental unit amount. Resident agrees that Owner/Agent may estimate any and all utility charges above upon Resident's move-out (and such amounts shall be deemed final). Resident is responsible for all setup, deposits, and activation fees of all utilities not paid for by the Community.
- iii) Resident will be billed, and shall pay, for trash service by the third party billing provider. Resident's trash charges are billed using a Ratio Utility Billing system. The provider's bill for trash service for the community is divided equally among all occupied rental units to obtain a per rental unit charge for trash service.
- iv) Owner/Agent will remain the customer of record for Electric utilities in the rental unit. The local electric utility



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provider measures utility usage in each rental unit and bills Owner/Agent directly for such charges. If Owner/Agent has installed solar panels for electricity in the community that generate electricity for the residential rental units, a portion of this generated electricity may be allocated to Resident's utility usage (via a discounted rate) by Owner/Agent. The third party billing provider will bill Resident for gas and electric charges.

- v) Each Utility Bill shall be based on the most current Property bill available at the time of the billing for the Utilities for the Property allocated to Resident pursuant to the Allocation Formula. Resident will receive a separate bill ("Utility Bill") each month for Resident's share of such checked Utilities.
- vi) Payment of the Utility Bill is due as noted on each Utility Bill. Resident will pay a monthly service fee of no more than \$10.00 or a monthly solar billing fee not to exceed \$10.00, single family homes the monthly solar billing fee will not exceed \$15.00. The service fee represents the reasonable value of services provided by Owner/Agent or the Billing Provider to allocate the utility costs, provide billing to Resident, process payments and, where applicable, postage costs. The monthly service fee is subject to change upon thirty (30) days' notice. Unless otherwise provided, Resident agrees to pay the Utility Bill monthly at the location identified on such Utility Bill. Owner/Agent and Resident agree if the payment is received by the utility billing company **after** the specified due date Resident will be assessed a late fee, not to exceed \$10.00. Resident and Owner/Agent acknowledge that this is a reasonable compensation for any loss that may be sustained as a result of the late payment. If Resident passes a check on insufficient funds, Resident will be responsible for the value of the check and a service fee of \$25.00. Any additional fees will appear on the next monthly utility statement.

Resident(s) initials here: 

- vii) To the extent permitted by law, any delinquent payment of a Utility Bill shall be considered a default under this Lease Agreement to the same extent and with the same remedies to Owner/Agent (including, without limitation, the right to bring a summary proceeding for eviction against Resident and the right to impose late fees and other related charges and fees) as if Resident had been delinquent in Resident's payment of rent.
- viii) If Resident moves into or out of the rental unit on a date other than the first of the month, Resident will be charged for the full period of time that Resident was living in, occupying or responsible for payment of rent or the Utilities for the rental unit. If Resident breaks or breaches this Lease Agreement, Resident will be responsible for all charges for the Utilities through the time it takes for Owner/Agent to retake possession of the rental unit. When the Resident vacates the rental unit, all charges for the Utilities must be paid by the move out date. To the extent permitted by law, any unpaid charges for the Utilities at the time of the move out date will be deducted from the security deposit being held by Owner/Agent under this Lease Agreement.
- ix) Resident understands that no representation or warranty by Owner/Agent regarding estimated or actual Utility Bills shall be enforceable unless it is set forth in a writing signed by Owner/Agent.
- x) Owner/Agent is not liable for any losses or damages Resident incurs as the result of outages, interruptions, or fluctuations in utilities provided to the rental unit unless such loss or damage was the direct result of negligence of Owner/Agent. Resident releases Owner/Agent from any and all such claims and waive any claims for offset or reduction of rent or diminished rental value of the rental unit due to such outages, interruptions, or fluctuations.
- xi) Resident understands and agrees that continued occupancy of the rental unit when electricity, natural gas, water, or sewer services have been discontinued is hazardous. Resident agrees not to terminate, cut off, interrupt, interfere with, or discontinue supplying electricity, natural gas, water or sewer services to the rental unit. Resident shall not tamper with, adjust, or disconnect any utility sub metering system or device. Violation of this provision is considered a material violation of this Lease Agreement.

Resident(s) initials here: 

- xii) Resident agrees that Resident may, upon thirty (30) days prior written notice from Owner/Agent to Resident, begin receiving a bill for additional utilities and services, at which time such additional utilities and services shall, for all purposes, be included in the term "Utilities."

22. Smart Home Technology: If your community participates in the "smart home" program your rental unit will be equipped with a **Hub Device** that will control such items as the thermostat, door locks, and light switches (collectively, Amenities). These devices and technology are provided by a third party provider, Owner/Agent may determine to



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change providers at any time for any reason and will provide notice thereof to Resident. Resident shall hold Owner/Agent harmless and indemnify Owner/Agent for any damages or costs incurred by Resident resulting from this Amenity and the use thereof.

- i) Resident(s) acknowledges and agrees that the devices may be installed at the community, and agrees to the installation, use and maintenance of said devices at the community.
- ii) Resident(s) consents to Owner/Agent providing the third party provider necessary resident information such as name, email, and rental unit number consistent with providing this smart rental unit technology to the resident. The third party provider's collection, control, maintenance, storage, processing, transmittal and use will be in accordance with third party providers Privacy Policy which are made on the community website at [REDACTED].
- iii) Owner/Agent shall not be liable for any failures of smart rental unit technology or any part of the amenity. Owner/Agent shall not be liable for any damages, actual, consequential, or otherwise related to the use, inability to use, failure, suspension, or any other related issues regarding the Amenity. Resident acknowledges and agrees that Owner/Agent does not represent or warrant that the Amenity works, will always work, or will work as anticipated. Owner/Agent's sole responsibility shall be to work as a conduit for resolution of any problems with the Amenity.
- iv) Resident(s) is responsible to notify Owner/Agent within 60 days of occupying the rental unit of any default of damaged smart rental unit equipment. Resident will be responsible for reimbursing the Owner/Agent for replacement costs of any damage incurred to equipment beyond that of normal wear and tear during the term of occupancy of the rental unit.

23. Renters Insurance: Resident's property is not insured by Owner/Agent. Resident is not a co-insured and is expressly excluded from any insurance policy held by Owner/Agent, which is now in effect or becomes effective during the term of this Lease Agreement. Owner/Agent is not responsible for fire, theft or damage to personal property, etc. in the rental unit, laundry, storage lockers, garage, or any portion of the building. Although not required Owner/Agent strongly recommends that the Resident obtains "Renter's Insurance" covering personal possessions.

Resident(s) initials here: [REDACTED]

24. Keys: Resident has received one (1) set of keys for each Lessee on this Lease Agreement. Keys are the exclusive property of the Owner/Agent. All keys must be returned to Owner/Agent when Resident vacates. Resident will be charged for the cost of new locks and keys if all keys are not returned. If any keys are lost or provided to any unauthorized occupant or non-Resident, Resident shall be liable for the entire cost of all key and lock replacement, at the discretion of Landlord, as required for the security of the premises and its occupants. This may include the costs of re-keying the entire Premises if Owner/Agent, at Owner/Agent's sole discretion, deems such action is necessary. Resident agrees to pay up to \$50.00 for each key lost during residency or not returned at time of vacating. Resident should take care not to lock himself/herself out of the rental unit. If Owner/Agent is required to assist any resident in gaining entry to the rental unit after hours, Resident will be charged \$30.00 plus any out of pocket expenses incurred by the Owner/Agent, Owner/Agent may require Resident to contract with a professional locksmith.

25. Subletting and Assignment: No portion of the rental unit shall be sublet nor this Lease Agreement assigned. Any attempted subletting or assignment by Resident shall, at the election of Owner/Agent, be an irremediable breach of this Lease Agreement and cause for immediate termination as provided herein and by law. Resident is prohibited from offering all or part of the rental unit for short-term rental, such as through [REDACTED] or other such sites. Any person who is not an Occupant or Resident who signed this Lease Agreement, who occupies any portion of the rental unit, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is not a Guest. This constitutes attempted subletting or assignment under this Lease Agreement, and is, at the election of the Owner/Agent, irremediable breach of the Lease Agreement and cause for immediate termination.

26. Prohibitions: Without Owner/Agent's prior written permission, no pianos, waterbeds, swimming pools, trampolines, fireworks, fire pits, outside gas heaters, outside antennae, charcoal or wood burner or other open flame cooking devices, or liquefied petroleum gas fueled cooking devices ("grills") may be kept or allowed in or about the premises, including any indoor or outdoor common areas.





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Resident shall not engage in any of the actions or conduct related to marijuana, that are otherwise permitted under Health and Safety Code 11362.1, on the premises. This includes growing and use of marijuana in any form.

- 27. Entry and Cooperation:** California law allows Owner/Agent or their employee(s) to enter the rental unit for certain purposes during normal business hours. The Owner/Agent will provide written notice to the Resident prior to the entry of the rental unit whenever required by state law.

The Resident's refusal to allow the Owner/Agent to enter the rental unit as allowed by law is a material breach of this Lease Agreement and California law and is cause for immediate termination as provided herein and by law.

If the premises is required by any government agency, lender or insurer to undergo, repairs or alterations, or in case of other necessary or agreed repairs, Resident agrees to cooperate fully with Owner/Agent so that all such repairs or alterations are made in as expeditious and efficient a manner as possible. Owner/Agent or Agent's Employees may enter the rental unit without notice in case of emergency, or (1) when Resident has abandoned or surrendered the rental unit, or (2) to make necessary or agreed repairs or services, decorations, alterations or improvements, or (3) to exhibit the rental unit, provided Resident is given reasonable notice of their intent to enter, with entrance during normal business hours (8:00a.m. to 6:00p.m., Monday through Saturday, except holidays). Twenty-four (24) hours shall be presumed to be reasonable notice, in absence of evidence to the contrary. Resident may be present, however, entry is not conditioned upon such presence and Resident agrees to hold Owner/Agent harmless for such entry.

- 28. Alterations:** Resident shall make a written request to Owner/Agent regarding any alterations contemplated. Except as provided by law, no alterations shall be done by Resident without Owner/Agent's prior written consent. This includes, but is not limited to, painting, wallpapering, and changing locks. Window sills or ledges must be kept clean and shall not be used for storage or display of bottles, food, signs or objects of any kind. Approval must be obtained prior to hanging of any heavy object on the walls or ceiling. Only picture hooks may be used to hang pictures, mirrors, and decorative items on the walls. Resident may not make any alterations to cable or telephone inside wiring (such as may occur when changing telecommunications providers or adding phone lines) without prior written consent of the Owner/Agent. The consent request regarding proposed alteration to inside wiring shall include the name, address, and telephone number of any new telecommunications providers. Resident agrees to pay all costs resulting from the alteration and agrees to pay to the Owner/Agent any costs associated with restoring the inside wiring to the condition at the time of move-in, except for reasonable wear and tear. Resident shall hold Owner/Agent harmless and indemnify Owner/Agent as to any mechanics lien recordation or proceeding caused by Resident.

- 29. Care, Cleaning and Maintenance:** Except as prohibited by law, Resident agrees:

- i) to keep the premises as clean and sanitary as their condition permits and to dispose of all rubbish, garbage and other waste, in a clean and sanitary manner, unless Owner/Agent has expressly agreed otherwise in writing in an addendum to this Lease Agreement. Resident shall ensure that large boxes are broken apart before being placed in trash containers. Resident shall be responsible, at Resident's expense for hauling to the dump those items too large to fit in trash containers. Resident shall not dispose of any flammable liquids, rags or other items soaked with flammable liquids or any other hazardous material in trash containers or bins;
- ii) to properly use and operate all electrical, gas and plumbing fixtures and keep them as clean and sanitary as their condition permits;
- iii) to keep the rental unit and furniture, furnishings and appliances, and fixtures, which are leased for resident's exclusive use, in good order and condition;
- iv) that all rooms in rental unit and all appliances and fixtures in the rental unit must be able to be used for their intended purpose(s); carpet is to be vacuumed on a regular basis. Ground in dirt shall be considered beyond ordinary wear and tear and Resident will be responsible for damage which may include replacement;
- v) not to willfully or wantonly destroy, deface, damage, impair or remove any part of the premises, the facilities, equipment, or appurtenances thereto or to permit any person in the premises, to do any such thing;
- vi) to occupy the rental unit as a residence, utilizing portions thereof for living, sleeping, cooking or dining purposes only which were respectively designed or intended to be used for such purposes;
- vii) to promptly advise Owner/Agent of any items requiring repair, such as locks, light switches, smoke detectors, appliances, heating and air conditioning (if provided) systems. Resident shall notify the Owner/Agent of any



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leaks, drips, water fixtures that do not shut off properly, including, but not limited to, a toilet, or other problems with the water system, including, but not limited to problems with water-saving devices. Resident shall make repair requests as soon after the defect is noted as is practical;

- viii) to keep doors and windows and access to them unobstructed and to not block them with personal items or otherwise, and to maintain clear pathways into and through each room in the rental unit;
- ix) to maintain the rental unit in a manner that allows necessary access through each room and to all doors and windows, does not inhibit necessary airflow, does not act as a potential haven for pests and mold growth, does not create a fire hazard, and allows rooms from being used for their intended purposes;
- x) to leave the premises in the same condition as it was received, subject to normal wear and tear, as its condition permits;
- xi) to return the premises, upon move-out to the same level of cleanliness it was in at the inception of the residency;
- xii) to pay Owner/Agent for costs to repair, replace or rebuild any portion of the premises damaged by the Resident, Resident's guests or invitees.

30. Notice to Vacate: If at the end of the lease term Resident does not intend to renew the Lease Agreement Owner/Agent requires a written notice thirty (30) days prior to the date you intend to vacate. If written notice is given less than 30 days prior to the expiration of the lease agreement, resident will be charged through the 30 day period even if the rental unit is not occupied by Resident during this time. If you must vacate prior to lease expiration, please contact your Community Manager for details regarding details of the Lease Termination Option.

Resident(s) initials here: 

31. Lease Termination Option: Provided Resident is not in default under this Lease Agreement, Resident shall have the option to terminate his/her Lease Agreement prior to the expiration date on the following terms and conditions:

- i. Resident shall give Owner/Agent not less than 30 days written notice, by form prescribed by and available from Owner/Agent, of the Resident's intent to terminate. Once given the notice cannot be revoked, except with the Community Manager's written consent.
- ii. In order to exercise the Lease Termination Option, the Resident must pay the termination fee at the time the Notice of Intent to Vacate is submitted, or within 48 hours thereafter. If the Resident has resided at the community for less than one (1) year the fee will be equal to two (2) times the current monthly rent under the Lease Agreement. If the resident has resided at the community for more than one (1) year the fee to be paid will be equal to one (1) times the current monthly rent under the Lease Agreement.
- iii. Resident must continue to pay rent when due and all other conditions under the Lease Agreement remain in effect.
- iv. Resident will be responsible for repayment of all lease concessions received during the initial lease term.
- v. If the Resident does not follow the procedures exactly as set forth in this section i. through iv. above, the Resident will be charged a Lease Termination Fee equal to two (2) times the monthly rent under the Lease Agreement; if the amount of time left on the lease agreement is less than sixty (60) days the resident will be charged a lease termination fee through the end of the lease or a 30 day notice, whichever is greater. Any unpaid balances after move out may be sent to collections and a negative credit report may be submitted to a credit reporting agency.

Resident(s) initials here: 

32. Use of Premises: The rental unit shall be used as a dwelling for residential purposes only and for no other reason. No retail, commercial, or professional use of the premises shall be made, unless such use conforms to applicable zoning laws and prior written consent of Owner/Agent is obtained in advance of such proposed use. As a condition of granting such permission, Owner/Agent may require that the Resident obtain liability insurance for the benefit of the Owner/Agent.

33. Security Devices: Resident may not install any security devices (including but not limited to, security cameras and video doorbells) that capture any images and/or sounds outside the Resident's rental unit without Owner/Agents prior





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written consent, which may be granted or withheld in Owner/Agent's sole discretion.

- 34. Large Appliances:** Resident shall not move or remove any large appliances provided by Owner/Agent without prior written consent of the Owner/Agent. Resident shall not install or operate any additional refrigerators, freezers, washing machines, clothes dryer, portable dishwashers, air conditioners, generators or other large appliances not provided by the Owner/Agent, without prior written consent of the Owner/Agent. Resident may operate a generator in emergency situations, provided that (1) all manufacturer safety procedures are followed, including operating the generator in an outside space and (2) the generator does not create a nuisance (noise or other) for other residents.
- 35. Fines and Penalties:** Resident is responsible for any fines or other costs occasioned by violations of the law by Resident or Resident's guests on the premises while Resident is in possession. If any such fines or costs are levied against Owner/Agent, Resident agrees to pay such fines or costs attributed to Resident's tenancy or the conduct of Resident, Resident's guests or others on the premises, upon receipt of an invoice from Owner/Agent. The obligation to pay fines and costs assessed against Owner/Agent may be in addition to any assessed directly against the Resident. In the event that the Owner/Agent has already paid fines or costs levied against Owner/Agent, Resident shall reimburse Owner/Agent for the entire sum paid, within five (5) days of Owner/Agent's written demand. The obligation to pay fines and costs assessed against Owner/Agent may be in addition to any assessed directly against resident.
- 36. Water Conservation:** The State Water Resources Control Board prohibits all Californians from: washing down driveways and sidewalks; watering of outdoor landscapes that cause excess runoff; using a hose to wash a motor vehicle, unless the hose is fitted with a shut-off nozzle; and using potable water in a fountain or decorative water feature, unless the water is recirculated. Many local water boards also have restrictions. Local information is available at <https://www.acwa.com/drought-response/>. Owner/Agent may provide Resident's name and address to the local water agency for the purpose of notifications and enforcement of water use restrictions. Nothing herein is deemed to be authorization of or consent by Owner/Agent to water usage not otherwise authorized by this agreement. Resident shall ensure that he/she is aware of and complies with local and state water use restrictions and promptly pay any fines or other costs occasioned by water usage violations attributed to Resident, Resident's guests, or others at the premises, including any fines or costs levied against the Owner/Agent.
- 37. Liability for Packages:** Owner/Agent is not responsible for the delivery, acceptance or receipt of, damage to or loss of messages, packages, mail or other material left at entrances to the rental unit or elsewhere on the premises, including package delivery rooms.
- 38. Smoke Detection Device:** The rental unit is equipped with a functioning smoke detection device(s), which was tested and found operable by the Owner/Agent. Owner Agent shall have a right to enter the rental unit to check and maintain the device as provided by law. Resident shall be responsible for performing the manufacturer's recommended test of the device weekly and immediately reporting to Owner/Agent in writing any defect, malfunction, or failure of any detector, and any problems, maintenance or need for repairs. Resident may not disable, disconnect or remove the detector.
- 39. Carbon Monoxide Detection Device:** If the rental unit is equipped with a functioning carbon monoxide detection device(s), the devices have been tested and found operable by Owner/Agent. Owner/Agent shall have a right to enter the rental unit to check and maintain the device as provided by law. Resident shall be responsible for performing the manufacturer's recommended test of the device weekly and immediately reporting to Owner/Agent in writing of any defect, malfunction, or failure of any detector, and of any problems, maintenance or need for repairs.
- 40. Substantial or Material Breach:** The characterization in this Agreement that the failure of the resident to comply with a particular provision of this Agreement are substantial or a material breach of this Agreement shall not serve to limit Owner/Agent's right to contend that other breaches of this Agreement are substantial, material, or sufficient to warrant the termination of resident's residency.
- 41. Waiver of Breach:** The waiver of either party of any breach shall not be construed to be a continuing waiver of any subsequent breach. The receipt by Owner/Agent of the rent with the knowledge of any violation of a covenant or condition of this Lease Agreement shall not be deemed a waiver of such breach. No waiver by either party of the provisions herein shall be deemed to have been made unless expressed in writing and signed by all parties to this





Lease Agreement

Lease Agreement.

- 42. Joint and Several Liability:** The undersigned Resident(s), whether or not in actual possession of the rental unit, are jointly and severally liable for all obligations under this Lease Agreement, and shall indemnify Owner/Agent for liability arising prior to the return of possession to the Owner/Agent for personal injuries or property damage caused by or permitted by Resident(s), their guests and invitees. This does not waive "Owner/Agent's duty of care" to prevent personal injury or property damage where that duty is imposed by law.
- 43. Notice Regarding Sex Offender Database and Website:** Pursuant to Section 290.46 of the Penal Code, information about specified registered sex offenders is made available to the public via an Internet Web site maintained by the Department of Justice at www.meganslaw.ca.gov. Depending on an offender's criminal history, this information will include either the address at which the offender resides or the community of residence and ZIP Code in which he or she resides.
- 44. Credit Reports:** A negative credit report reflecting on your credit history may be submitted to a credit reporting agency if you fail to fulfill the terms of your credit obligations. Resident expressly authorizes Owner/Agent (including a collection agency) to obtain Resident's consumer credit report, which Owner/Agent may use if attempting to collect past due rent payments, late fees, or other charges from Resident, both during the term of the Lease Agreement and thereafter.
- 45. Sale of Property:** In the event of the sale or refinance of the property: if Owner/Agent presents to Resident a 'Resident's Certification of Terms - Estoppel Certification,' or other similar form, Resident agrees to execute and deliver the form acknowledging that this Lease Agreement is unmodified and in full force and effect, or in full force and effect as modified with the consent of Owner/Agent, and stating the modifications, within ten (10) days of written notice. Failure to comply shall be deemed Resident's acknowledgement that the form as submitted by Owner/Agent is true and correct and may be relied upon by any lender or purchaser.
- 46. Destruction or Damage to the Rental Unit:** In the event the rental unit is partially or totally damaged or destroyed by fire or other cause, the following will apply:
- i) If the rental unit is totally destroyed by fire, earthquake or other casualty, this Lease Agreement will terminate, as of the date on which the damage occurs. However, if the damage or destruction is the result of the negligence of the resident, or his or her invitees, then the Lease Agreement will not terminate, unless notice is given by the Owner/Agent, specifying the termination date.
 - ii) If the rental unit is only partially damaged, or are temporarily uninhabitable, as determined by Owner/Agent, Owner/Agent will use due diligence to begin the process to repair such damage and restore the rental unit as soon as possible. If only part of the rental unit cannot be used, there will be a proportionate rent discount until the rental unit is repaired, to be determined solely by the Owner/Agent.
- 47. Hazard Notice:** Pursuant to Government Code Section 8589.45, Resident may obtain information about hazards, including flood hazards that may affect the property, from the Internet Web site of the Office of Emergency Services at <http://myhazards.caloes.ca.gov/>. Owner/Agent's insurance does not cover the loss of the Resident's personal possessions and it is recommended that the resident consider purchasing renter's insurance and flood insurance to insure his or her possessions from loss due to fire, flood, or other risk of loss. The Owner/Agent is not required to provide additional information concerning flood hazards to the property and the information provided pursuant to this section is deemed adequate to inform Resident.
- 48. Severability Clause:** If any provision of this Lease Agreement is held illegal or unenforceable in a judicial proceeding, such provision shall be severed and shall be inoperative, and the remainder of this Lease Agreement shall remain operative and binding on the Parties.
- 49. Entire Agreement:** This Lease Agreement, which includes all attachments referred to below, constitutes the entire agreement between the parties and cannot be modified except in writing and signed by all parties, except as permitted by applicable law. Neither Owner/Agent, nor any employee of Owner/Agent has made any representations or promises other than those set forth herein.
- 50. Disclosure of Person(s) Authorized to Manage the Premises and Information for Service of Process and**





Lease Agreement

Notices: The following information is provided as required by California Civil Code Section 1962. The Owner/Agent's agent for service of any notices demands, and for service of process delivered to, and the person authorized to manage the premises is the Community Manager at [REDACTED].

If a person other than the Owner is listed in this paragraph as a person who is authorized to manage the premises, this means the Owner has contracted with an agent to manage the premises on the Owner's behalf. Unless otherwise specified in this Lease Agreement, for obligations Resident has to Owner, Resident shall tender their performance to the agent identified in this paragraph as the person authorized to manage the premises. For example, if Resident is required to seek Owner's written permission before engaging in certain conduct, Resident shall seek such permission from the agent identified in this paragraph as the person authorized to manage the premises.

51. Attorneys' Fees: If any legal action or proceeding is brought by either party to enforce any part of this Lease Agreement, the prevailing party shall recover, in addition to all other relief, reasonable attorneys' fees not to exceed \$2,500, plus court costs.

52. Mandatory Bed Bug Notice: California law requires all Owners/Agents to provide specific information about bed bugs to their Residents. By initialing as provided, Resident(s) acknowledge receipt of the Bed Bug Notification Addendum.

Resident(s) initials here: 





Lease Agreement

53. Addenda: By initialing as provided, Resident(s) acknowledges receipt of the following addenda, as indicated, copies of which are attached hereto, and are incorporated as part of this Lease Agreement.

- ☒ **Bed Bug Notification Addendum**
- ☒ **Day Care Addendum**
- ☒ **Information Bulletin - Lithium Ion Battery Safety**
- ☒ **Offer of Positive Rental Payment Information Reporting Addendum**
- ☒ **Election of Positive Rental Payment Information Reporting**
- ☒ **Information on Dampness and Mold for Renters in CA**
- ☒ **Fresno Non-Smoking Ordinance Addendum**
- ☒ **Move-Out Guidelines for Return of Security Deposit**
- ☒ **Proposition 65 Warning Addendum**
- ☒ **Service Guarantee Addendum**

Resident(s) initials here: 

54. Breach of Lease: In the event that the Resident breaches this Lease Agreement, Owner/Agent shall be allowed at Owner/Agent's discretion, but not by way of limitation, to exercise any or all remedies provided Owner/Agent by California Civil Code 1951.2 and 1951.4. Damages Owner/Agent "may recover" include the worth at the time of the award of the amount by which the unpaid rent for the balance of the term after the time of award, or for any shorter period of time specified in the Lease Agreement, exceeds the amount of such rental loss for the same period the resident proves could be reasonably avoided.





Lease Agreement

THESE POLICIES MAY BE AMENDED OR ADDED TO AT ANY TIME, UPON WRITTEN THIRTY (30) DAY NOTICE BEFORE THE PROPOSED EFFECTIVE DATE OF THE CHANGE. ANY INFRACTION OR VIOLATION OF THESE POLICIES CAN LEAD TO AN IMMEDIATE NOTICE TO COMPLY, OR MAY CONSTITUTE GROUNDS FOR TERMINATION OF YOUR TENANCY. YOUR COOPERATION IS APPRECIATED.

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing, and receipt of a duplicate original.

10/21/20

Date	Signature →	Resident
Date	Signature →	Resident
Date	Signature →	Resident
Date	Signature →	Resident
Date	Signature →	Resident
Date	Signature →	Resident
Date	Signature →	Resident
Date	Signature →	Resident
Date	Print →	



Bed Bug Notification Addendum

This Addendum and is part of the Rental /Lease Agreement, dated 10/27/2025 between [REDACTED] (Owner/Agent) and [REDACTED] (Resident) for the premises located at [REDACTED], Unit [REDACTED] (if applicable) [REDACTED].

It is our goal to maintain the highest quality living environment for our Residents. The Owner/Agent has inspected the unit prior to lease and knows of no bed bug infestation. Residents have an important role in preventing and controlling bed bugs. While the presence of bed bugs is not always related to personal cleanliness or housekeeping, good housekeeping will help control the problem by identifying bed bugs, minimizing an infestation, and limiting its spread.

1. Previous Infestations

- i) Resident shall not bring onto a property personal furnishings or belongings that the Resident knows or should reasonably know are infested with bed bugs, include the personal property of the Resident(s) guests.

2. Prompt Reporting

- i) **If you find or suspect a bed bug infestation, please notify Owner/Agent as soon as possible** and describe any signs of infestation so that the problem can be addressed promptly. **Please do not wait.** Even a few bed bugs can rapidly multiply to create a major infestation that can spread from unit to unit.
- ii) **Report maintenance needs immediately.** Bed bugs like cracks, crevices, holes, and other openings. Request that all openings be sealed to prevent the movement of bed bugs from room to room.
- iii) If you suspect a bedbug infestation or have other maintenance needs, please contact the Leasing Center and place your request with the staff.

3. Information about Bed Bugs

- i) **Bed Bug Appearance:** Bed bugs have six legs. Adult bed bugs have flat bodies about 1/4 of an inch in length. Their color can vary from red and brown to copper colored. Young bed bugs are very small, their bodies are about 1/16 of an inch in length and they have almost no color. When a bed bug feeds its body swells, may lengthen and becomes bright red, sometimes making it appear to be a different insect. Bed bugs do not fly, they either crawl or are carried from place to place on objects, people, or animals. Bed bugs can be hard to find and identify because they are tiny and try to stay hidden.
- ii) **Life Cycle and Reproduction:** An average bed bug lives about ten (10) months. Female bed bugs lay one to five eggs per day. Bed bugs grow to full adulthood in approximately 21 days.
- iii) Bed bugs can survive months without feeding.
- iv) **Bed Bug Bites:** Because bed bugs usually feed at night, most people are bitten in their sleep and do not even realize they were bitten. A person's reaction to insect bites is an immune response and so it varies from person to person. Sometimes the red welts caused by the bites will not be noticed until many days after a person was bitten, if at all.
- v) **Common signs and symptoms** of a possible bed bug infestation:
 - a. Small red to reddish brown fecal spots on mattresses, box springs, bed frames, lines, upholstery, or walls.
 - b. Molted bed bug skins, white sticky eggs or empty eggshells.
 - c. Very heavily infested areas may have a characteristically sweet odor.
 - d. Red itchy bite marks, especially on the legs, arms and other body parts exposed while sleeping.
However, some people do not show bed bug lesions on their bodies even though bed bugs may have fed on them.
- vi) For more information, see the internet Websites of the United States Environmental Protection Agency and the National Pest Management Association.
 - a. <http://www2.epa.gov/bedbugs>
 - b. <http://www.pestworld.org/all-things-bed-bugs/>



4. **Cooperation with Pest Control**

- i) Residents shall cooperate with the inspection including allowing entry to inspect and any unit selected by the pest control operator until bed bugs have been eliminated and providing *to the pest control operator information that is necessary* to facilitate the detection and treatment of bed bugs.
- ii) Prior to treatment, affected Residents will receive a written notice including the date(s) and time(s) of treatment, whether and when the Resident is required to be absent from the unit, the deadline for Resident preparation of the unit and a pretreatment checklist with information provided by the pest control operator.
- iii) The Resident shall fulfill their responsibilities for the unit preparation before the scheduled treatment as described in the pest control operator's pretreatment checklist.
- iv) Resident(s) are responsible for the management of their belongings, including but not limited to, clothing and personal furnishings.
- v) If the pest control operator determines that it is necessary for the Owner/Agent or Resident to dispose of items that are infested with bed bugs, the items shall be securely sealed in a bag that is of a size as to readily contain the disposed item. All bags shall be clearly labeled as being infested with bed bugs **prior** to disposal.
- vi) Resident(s) who are not able to fulfill their unit preparation responsibilities shall notify the Owner/Agent at least once business day prior to the scheduled pest control operator inspection or treatment.
- vii) Resident(s) must vacate his or her unit if required by the pest control operator for treatment purposes and shall not reenter the unit until directed by the pest control operator.

5. **Prevention Recommendations**

- i) Resident shall **check for hitch-hiking bed bugs**. If you stay in a hotel or another home, inspect your clothing, luggage, shoes, and belongings for signs of bed bugs *before* you enter your apartment. Check backpacks, shoes, and clothing after visits to friends or family, theaters, or after using public transportation.
- ii) **Thoroughly clean after guests have departed**. Immediately after your guests leave, seal bed linens in plastic bags until they can be washed and dried on high heat. After your guests have left, inspect bedding mattresses and box springs, behind headboards, along carpet edges and the undersides of sofa cushions for any signs of bed bugs.
- iii) Resident(s) should **avoid using appliances, electronics and furnishings that have not been thoroughly inspected for the presence of bed bugs**. Make sure that electronics, appliance or furniture company has established procedures for the inspection and identification of bed bugs or other pests. This process should include inspection of trucks used to transport appliances, electronics, or furniture. Never accept an item that shows signs of bed bugs. Check secondhand furniture, beds and couches for any **signs of bed bug infestation** before bringing the item home. Never take discarded items from the curbside or dumpster areas.
- iv) Use protective covers that encase mattresses and box springs to help eliminate many hiding spots. The light color of the encasement makes bed bugs easier to see. Be sure to purchase high quality bed bug encasements that will resist tearing and check the encasements regularly for holes.
- v) Reduce clutter in the home to reduce hiding places for bed bugs.
- vi) Vacuum regularly to remove successful hitchhikers.
- vii) Be vigilant when using shared laundry facilities. Transport items to be washed in plastic bags (if you have an active infestation, use a new bag for take the items home). Remove from dryer directly into a plastic bag and fold at home. A dryer on high heat can kill bed bugs.

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing.

10/21/2025

Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date		Date

Move-Out Guidelines for Return of Security Deposit

All keys must be returned the day you vacate. All rent is to be paid up to your vacating date. If keys are not returned it will be assumed you still have possession of the premises and rent will be withheld from your deposit. If keys are not returned, you will be charged for a new lock and key.

It is understood upon granting occupancy of said premises your security deposit will be refundable providing that you leave the premises in the same condition as reported on your Move-In/Out Itemized Statement and in accordance with the standards listed below.

All damages repaired and/or janitorial work needed will be charged against the security deposit, including but not limited to the items listed below. It should be noted that every effort is made to keep these expenses as low as possible, but we have an obligation to use only licensed, bonded, and insured contractors. We will not charge you any more for cleaning and repairs than it costs us.

Important: The standards listed below for return of deposit must be completed on or before the last day of your 30 day notice or you will be liable for another months rent.

- a) Having personal effects remaining
- b) Still cleaning
- c) Keys not turned in to the manager by the last day

Any hold over must be approved in writing by the Community Manager.

Below is the **Checklist** of standard cleaning procedures:

Appliances:

Range, oven, hood, and drip pans must be free of all grease and baked on matter inside and out. Remember not to use oven cleaner on any painted surfaces or you may end up paying to repaint or replace an appliance.

Refrigerator must be defrosted, cleaned, dried, and left running.

Dishwasher should be clean in and out.

Garbage disposal cleaned and operational.

Balcony/Patio:

Must be swept clean of debris and spider webs.

Carpets:

You will be charged for carpet cleaning, Kool-Aid stains, cigarette burns, bleach spots, or any other stains or damages caused by abuse or negligence that result in additional costs to the owner to restore carpet conditions or in some cases replace carpet.

Carports/Garage:

All carports and garages must be free of any oil stains and swept clean of debris and spider webs.

Closets:

Hangers removed, shelves dusted, light fixtures cleaned.

Doors:

Wood doors wiped clean on both sides. Shower doors free of soap scum and water spots.

Fireplace:

Cleaned out and vacuumed.

Fixtures:

Sinks, basins, tub, toilet and shower, must be clean. Faucets polished.

Floors:

All floors must be cleaned, even behind the stove and refrigerator.

Kitchen/Bathroom Cabinets:

All kitchen and bathroom cabinets must be clean and crumb free. All shelf paper removed. All cabinet doors must be cleaned. Counter tops must be clean and grout should be free of stains.

Mirrors:

Cleaned.

Painting/alls

The premises have been painted with standard brands and colors used company wide. We expect all walls, baseboards, and switch-plate covers to be free of dirt when you move. You will be charged for any paint, touch-up or cleaning needed.

Vents:

Cleaned and vacuumed.

Window Coverings:

Free of dust and dirt.

Windows/Sills & Screens:

Clean inside and out. All tracks must be free of dirt. Screens are not to have any holes in them.

All personal property must be removed from the premises. Anything left in the premises will be discarded and a fee charged.

Please make sure all cleaning is complete, heating and air conditioning system turned off and all windows and doors are securely locked before turning in keys. There will be no cleaning or repairs, allowed by resident once keys are returned to management.

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing, and receipt of a duplicate original.

[REDACTED] 10/21/20			
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	[REDACTED]	Date

Day Care Addendum

This document is an Addendum and is part of the Rental /Lease Agreement, dated [REDACTED] between [REDACTED] (Owner/Agent) and [REDACTED] (Resident) for the premises located at [REDACTED], Unit # (if applicable) [REDACTED].

Licensing and Notice of Operation

1. California law requires family day care home providers to be licensed. A prospective family day care home provider, who resides in a rental property, shall provide 30 days' written notice to the Owner/Agent prior to the commencement of operation of the family day care home. A family day care home provider who has relocated an existing licensed family day care home program to a rental property, may provide less than 30 days' written notice where the State Department of Social Services approves the operation of the new location of the family day care home in less than 30 days, or the home is licensed in less than 30 days, in order that service to the children served in the former location not be interrupted. The written notice to the Owner/Agent shall include a copy of the family day care home license.
2. A family day care home provider shall notify the Owner/Agent in writing at the time of the annual license fee renewal. The written notice to the Owner/Agent shall include a copy of the renewed family day care home license.

Insurance and Security Deposit

1. California law permits the Owner/Agent upon commencement of, or knowledge of, the operation of a family day care home on his or her property, to require the family day care home provider to pay an increased security deposit for operation of the family day care home. The increase in deposit may be required notwithstanding that a lesser amount is required of tenants who do not operate family day care homes. In no event, however, shall the total security deposit charged exceed the maximum allowable under existing law.
2. California law requires family day care homes to maintain liability insurance, a bond or a file of affidavits signed by each parent with a child enrolled in the home acknowledging the lack of insurance or bond.

A family day care home that maintains liability insurance or a bond shall name the Owner/Agent as a certificate holder on the liability insurance policy or bond if all of the following conditions are met:

- a. The owner of the property or governing body of the homeowners' association makes a written request to be added as an additional insured party.
- b. The addition of the owner of the property or the homeowners' association does not result in cancellation or non-renewal of the insurance policy or bond carried by the family day care home.
- c. Any additional premium assessed for this coverage is paid by the owner of the property or the homeowners' association. (c) As used in this section, "homeowners' association" means an association of a common interest development, as defined in Section 1351 of the Civil Code.

✓ (Check if applicable) The Owner/Agent hereby requests to be added as the certificate holder.

Number of Children:

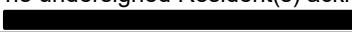
1. A Small Family Day Care Home may provide care, protection, and supervision for 8 or fewer children, including children under 10 years of age who reside in the home. According to Health and Safety Code Section 1597.44, a Small Family Day Care Home may provide care for more than 6 and up to 8 children, including children under the age of 10 years who reside in the rental unit, without any additional adult attendant, if all of the following conditions are met:
 - a. At least one child is enrolled in and attending kindergarten or elementary school and a second child is at least six years of age.
 - b. No more than two infants are cared for during any time when more than six children are cared for.





- c. The licensee notifies each parent that the facility is caring for two additional school age children and that there may be up to seven or eight children in the home at one time.
 - d. The licensee obtains the written consent of the Owner/Agent when the family daycare home is operated on property that is leased or rented.
2. A Large Family Day Care Home may provide care, protection, and supervision for 7 to 14 children, including children under 10 years of age who reside at the home. According to Health and Safety Code Section 1597.465, a Large Family Day Care Home may provide care for more than 12 children and up to 14 children, including children under the age of 10 years who reside in the rental unit, without an additional adult attendant, if all of the following conditions are met:
- a. At least one child is enrolled in and attending kindergarten or elementary school and the second child is at least 6 years old.
 - b. No more than two infants are cared for during any time when more than six children are cared for.
 - c. The licensee notifies each parent that the facility is caring for two additional school age children and that there may be up to seven or eight children in the home at one time.
 - d. The licensee obtains the written consent of the landlord when the family daycare home is operated on property that is leased or rented.

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing.

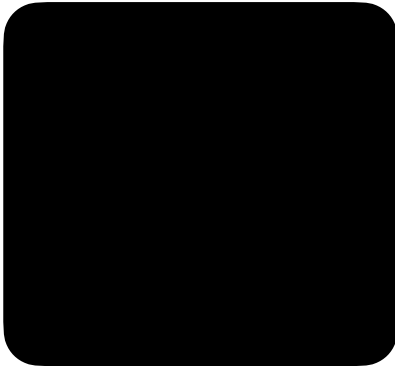
 10/21/20

Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date		Date





Service Guarantee Addendum



Our Pledge to You

We Are So Sure You Will Be Satisfied, We Guarantee It!
[Redacted] offers a 100% Resident Satisfaction, Money Back Guarantee.
If you are not happy with the condition of your new apartment home and we have not been able to satisfy you,
we will release you from your lease within the first 30 days.
Your full security deposit plus any unused rent will be refunded within 21 days.
However, residents will be held responsible for cleaning and damages to
the apartment home.

Our Maintenance Team Pledge

Our maintenance team does regular preventative maintenance inspections of all
major appliances, smoke detectors, and any other maintenance prevention as
required. Routine service requests made during the work week will be addressed
within 24 hours.

That is Our Pledge to You!

In the event your service request requires parts to be ordered,
it will be considered, addressed and repaired within 24 hours of receiving your part.
If your service request goes un-addressed for more than 24 hours, you will
receive a \$25.00 rent credit.
If you feel your request was not addressed to your
complete satisfaction; please notify us within 24 hours.
In addition, service requests made on weekends, after hours, and holidays will be addressed
within 24 hours of the next scheduled work day.
Emergency situations will receive prompt attention.
Restrictions include, but are not limited to, natural disasters, acts of God, or other unforeseen events.

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing, and receipt of a duplicate original.

[Redacted] 10/21/202			
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	[Redacted]	Date



Proposition 65 Warning Addendum

This Addendum is part of the Rental/Lease Agreement, dated 10/27/2025 between [REDACTED] (Owner/Agent) and [REDACTED] (Resident) for the premises located at [REDACTED], Unit # (if applicable) [REDACTED].

Landlord: Check at least one box in section (A) or one box in each of sections (B) and (C).

A. Chemicals known to the State of California to cause cancer and birth defects or other reproductive harm.

1. ☐ Lead-Based Paint

⚠️WARNING: Paint chips and dust from lead-containing paint on this property can expose you to lead, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

2. ☒ Plastic and Vinyl Items – Di(2-ethylhexyl)phthalate

⚠️WARNING: Plastic and vinyl items, such as flooring, miniblinds, wallpaper, cables and coatings on wires, on this property can expose you to di(2-ethylhexyl)phthalate which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

3. ☐ Miniblinds Containing Lead

⚠️WARNING: Imported vinyl miniblinds manufactured prior to 1997 on this property can expose you to lead, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

4. ☐ Wood, Gas and Other Combustion Sources – Benzene and Carbon Monoxide

⚠️WARNING: Fireplaces, firepits, grills and barbecues, gas stoves, gas heaters or other “fossil fuel” burning heaters or appliances (attached garages) on this property can expose you to carbon monoxide, which is known to the State of California to cause birth defects or other reproductive harm and to benzene, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

5. ☒ Pesticide –Resmethrin

⚠️WARNING: Pesticides used on this property can expose you to resmethrin, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

6. ☐ Swimming Pools/Spa – Chloroform from Chlorine

⚠️WARNING: Chlorine used as a pool or spa disinfectant on this property can expose you to chloroform, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

7. ☒ Secondhand Tobacco Smoke

⚠️WARNING: Cigarettes and cigars smoke on this property can expose you to tobacco smoke which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

Proposition 65 Warning Addendum

B. Chemicals known to the State of California to Cause Birth Defects or other Reproductive Harm

1. ☐ **Fungicides Containing Myclobutanil**

⚠️WARNING: Fungicides used on this property can expose you to myclobutanil, which is known to the State of California to cause birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

2. ☒ **Fungicides Containing Triforine**

⚠️WARNING: Fungicides used on this property can expose you to triforine, which is known to the State of California to cause birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

3. ☐ **Pesticides Containing Arsenic Trioxide**

⚠️WARNING: Pesticides used on this property can expose you to arsenic trioxide, which is known to the State of California to cause birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

C. Chemicals known to the State of California to Cause Cancer

1. ☐ **Building Materials – Formaldehyde**

⚠️WARNING: Building materials containing urea-formaldehyde resins, such as insulation, pressed wood materials, finishes, or adhesives on this property can expose you to formaldehyde, which is known to the State of California to cause cancer. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

2. ☐ **Ceiling Coatings and Other Asbestos-Containing Materials**

⚠️WARNING: Asbestos-containing materials, including some ceiling coatings on this property can, if damaged or disturbed, expose you to asbestos, which is known to the State of California to cause cancer. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

3. ☐ **Swimming Pools – Bromoform from Bromine**

⚠️WARNING: Bromine used as a pool or spa disinfectant on this property can expose you to bromoform, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

4. ☒ **Herbicides Containing Glyphosate**

⚠️WARNING: Herbicides used on this property can expose you to Glyphosate, which is known to the State of California to cause cancer and birth defects or other reproductive harm. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.

5. ☐ **Marijuana Smoke**

⚠️WARNING: Marijuana cigarettes, joints or bongs used on this property can expose you to marijuana smoke which is known to the State of California to cause cancer. Talk to your landlord about how and when you could be exposed to this chemical in your building. For additional information go to www.P65Warnings.ca.gov/apartments.



Proposition 65 Warning Addendum

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing.

<u>10/21/20</u>	Signature →	
Date		Resident
	Signature →	
Date		Resident
	Signature →	
Date		Resident
	Signature →	
Date		Resident
	Signature →	
Date		Resident
	Signature →	
Date		Resident
	Signature →	
Date		



Information on Dampness and Mold for Renters in California

Main points:

- Living in damp or moldy buildings increases the chances of respiratory problems like asthma.
- The critical warning signs are visible mold, water damage, damp materials, or mold smell.
- Dampness is needed for mold to grow, so if you control the dampness, you control the mold.
- Dampness or mold indoors may make housing substandard, per the California Health & Safety Code.



Beginning January 1, 2022, residential landlords shall provide this booklet to prospective residential tenants prior to entering the rental or lease agreement, in accordance with the 2001 Toxic Mold Protection Act (HSC #26148). This booklet, which explains the potential health risks and health impacts that may result from exposure to mold, was produced by the California Department of Public Health (CDPH) in 2020, in both English and Spanish versions

Health Problems from Damp or Moldy Buildings

Living or working in damp or moldy buildings increases the risk of many harmful health problems, including:

- asthma attacks in people who already have asthma
- a new asthma diagnosis
- respiratory infections, such as bronchitis
- breathing symptoms, such as hay fever, sneezing, stuffy nose, sore throat, wheezing, breathing difficulty, or cough
- eczema or skin rash

Mold can affect people differently. How much a person is affected depends on how sensitive they are and on how much they are exposed. Damp or moldy buildings are linked to health problems in people even if they do not have allergies

Signs of Dampness or Mold

Signs of dampness or mold that may cause health problems include:

- **visible mold** (regardless of color), such as on walls or ceilings, behind furniture or appliances, under carpets, or even hidden in areas not seen in the occupied areas of homes
- **mold odor**, noticed as an earthy, musty, or moldy smell
- **visible water damage**, such as water stains or discoloration on walls or ceilings, peeling or bubbled paint, warped floors, or rotting wood
- **damp or moist materials**, including condensation on windows or walls

Any one of these signs indicates increased risks to health, and the more that any of them are present, the greater the risk of health problems. Tests that identify the types of mold or the amounts of mold in buildings are not useful in telling us about the health risks. This is *why CDPH does not recommend testing for mold, such as measuring mold spores in the air*



Causes of Building Dampness that Can Allow Mold to Grow

The dampness that is necessary for indoor mold to grow can come from either inside or outside a building.

Indoor sources include:

- leaking or burst water pipes, for instance under sinks inside walls
 - not enough venting to the outside by open windows or exhaust fans in places where water is used or moisture is produced (for example, bathrooms, laundry areas, kitchens, and water heaters)
 - condensation (water droplets) on cold surfaces, including windows
- ### Outdoor sources include:
- water coming in through leaky roofs or poorly-sealed windows, or from flooding
 - damp, exposed dirt in crawl spaces
 - outdoor surfaces that slope and drain water toward a building, including from a downspout



Fixing Dampness and Mold Problems

The California Health & Safety Code (HSC §17920.3) says that when dampness or visible mold (or certain other conditions) in a home is a hazard to the health of occupants, the home is *substandard* and the property owner must fix the conditions. The Code excludes mold that is “minor and found on surfaces that accumulate moisture as part of their properly functioning and intended use.”

CDPH recommends fixing dampness and mold problems as follows:

- identifying and correcting the source of any water that may allow mold to grow
- rapid drying or removal of damp materials
- cleaning or removing mold and moldy materials as rapidly and safely as possible

Note: if a moldy area is simply bleached, cleaned, or painted over—without fixing the source of the dampness—the mold is likely to grow again.



Renters in California

The California Health & Safety Code requires property owners to provide a rental unit that is safe and healthy for the people living in it. Prospective renters should look for obvious conditions that show dampness or mold, and also less obvious signs like water leaks under the kitchen and bathroom sinks or moldy odor in a sealed-up home. Also look for conditions likely to cause future problems, like a bathroom that has no working vent fan or no window that opens, or a clothes dryer without an outside vent.

For renters who suspect there is dampness or mold:

1. Tell the property owner or manager. Early detection and correction of the dampness and mold problems can reduce the risks to your health and prevent the problem from getting worse.
2. If your property owner will not respond to your concerns in a reasonable amount of time, contact your local (city or county) code enforcement agency and ask for a code enforcement officer to inspect for violations. Many dampness or mold problems in rental homes are the responsibility of the property owner and must be addressed by them. However, a code enforcement officer may determine that dampness or mold in a building results from a tenant's actions or inactions – for instance, not using available bathroom ventilation during showers.
3. If the local inspector determines there is a violation, they can require the property owner to correct the problem.

Additional Resources

For general information on dampness and mold and a list of local code enforcement agencies, with a focus on dampness and mold, see www.cdph.ca.gov/iaq/mold. To see an animated video series, Mold in the Home, visit www.cdph.ca.gov/mold.

Property owners must provide a rental unit that is safe and healthy for the people living in it.

Tenants must notify property owners of any dampness or mold problems.

For more information, visit CDPH website (www.cdph.ca.gov/Pages/contact_us.aspx)



Non-Smoking Ordinance Addendum

For use with Units in Multi-unit Rental Properties, as defined by Section 10-2001(f)

This document is an Addendum and is part of the Rental /Lease Agreement, dated [REDACTED] between [REDACTED] (Owner/Agent) and [REDACTED] (Resident) for the premises located at [REDACTED], Unit # (if applicable) [REDACTED].

Notice of Applicability of Ordinance Prohibiting Smoking In and Around Multi-unit Rental Properties. Resident is hereby notified that the above-referenced apartment and premises upon which is located is subject to Article XX of Chapter 10 of the [REDACTED] (hereinafter the "Ordinance"), which prohibits smoking in and around multi-unit rental properties. As required by Sections 10-2003(s), Resident is notified that:

- a) Effective January 1, 2022, it is a material breach of this Lease/Rental Agreement to: 1) smoke or allow smoking in the apartment, excluding exclusive use outdoor areas (if smoking is otherwise permitted in exclusive outdoor areas at the premises); 2) smoke or allow smoking in any common areas of the multi-unit rental property other than a designated smoking area (if designated smoking areas are present); 3) violate any law regulating smoking while anywhere on the premises, or to allow any person subject to the control of the resident to engage in such behavior. [REDACTED] 10.2003(a)(1)-(2).
- b) Third-party beneficiary status is conveyed to all Occupants of the multi-unit rental property as to the smoking provisions of the Lease/Rental Agreement.
- c) A resident who breaches or allows any other person subject to control of resident to breach, a smoking provision of the Lease/Rental Agreement for the occupancy of an apartment in a multi-unit rental property shall be liable for breach to (1) the Owner/Agent; and (2) any occupant of the multi-unit rental property who is exposed to smoke or who suffers damage as a result of the breach. The ordinance does not create a private right to action for a resident against Owner/Agent for any damages the resident may suffer due to another resident's breach of any smoking provision in the Lease/Rental Agreement, so long as the Owner/Agent has fully complied with the terms of this Ordinance. [REDACTED] 10.2003(c).
- d) Failure to enforce any smoking provision by this Ordinance shall not affect the right to enforce such provision in the future, nor shall a waiver of any breach constitute a waiver of any subsequent breach or a waiver of the provision itself. [REDACTED] 10.2003(d).

As further required by Section 10.2003(a), the "lease Addendum" prepared by the [REDACTED] and a copy of the Ordinance are attached to this Addendum.

Advisory Regarding Ordinance. The following advisory regarding the Ordinance was prepared by the [REDACTED]:

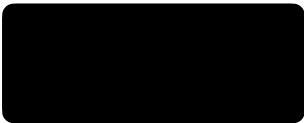
"As of January 1, 2022, smoking is prohibited in all apartments, common areas, and outdoor areas, except for specifically designated smoking areas.

On October 14, 2021, the [REDACTED] passed Ordinance 2021-045 prohibiting smoking in all multi-unit rental properties in [REDACTED] (Ordinance). The Ordinance will go into effect on January 1, 2022.

According to section 10-2004(a)-(b) of the Ordinance, all existing tenants must receive a written notice of the Ordinance not later than January 1, 2022. All new leases initiated after January 1, 2022, will include non-smoking provisions. Please note the new law prohibits smoking in all units and common areas, excluding any exclusive use outdoor areas, regardless of whether it is included in the lease, and violators of the law may be subject to a fine.

Under the smoke-free ordinance, "Multi-unit residence" means residential property containing two or more rental units where the majority of the units share at least one common wall with an adjacent unit. "Smoking" means inhaling, exhaling, or burning any tobacco, nicotine, or marijuana, or plant product, whether natural or synthetic,





intended for inhalation, or using an “electronic smoking device.” “Exclusive Use Outdoor Area” means an area accessible only by the occupant of a unit, such as private balcony, deck, porch, or patio. For additional provisions, see attached Ordinance.

The U.S. Surgeon General’s find that there is no safe level of exposure to secondhand smoke and the California Air Resources Board’s decision to classify secondhand smoke as a toxic air contaminant has prompted jurisdictions across the state and country to reduce multi-unit residents’ exposure to secondhand smoke.”

More Restrictive Smoking Policy in Lease/Rental Agreement Controls. The Ordinance does not affect or prohibit the implementation or enforcement of a more restrictive smoking policy than set forth in the Ordinance. Therefore, Resident is notified that if the Lease/Rental Agreement or any additional Smoking Policies Addendum contains a more restrictive smoking policy than is required by the Ordinance, **the more restrictive policy controls.**

Except as modified in the Addendum, the terms of the Lease/Rental Agreement, and all attachments to the Lease/Rental Agreement are and shall remain the same and in full force and effect.

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing.

[Redacted] 10/21/2025			
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	[Redacted]	Date



[REDACTED]

LEASE CLAUSE PROHIBITING SMOKING (Lease entered into after 1/1/2022)

The following language can be included in new leases and fulfills landlord requirements stated in [REDACTED] [REDACTED] Section 10.2001.

Smoking is prohibited in Tenant's unit and all common areas of multi-unit residence. It is a violation for Tenant, or any other person subject to the control of the Tenant or present by invitation or permission of the Tenant, to engage in smoking in the Tenant's unit or any common areas of the multi-unit residence.

For the purpose of this Section, the terms "smoke", "unit", "common area", and "multi-unit residence" are as defined in the [REDACTED], Chapter 10.2001.



BILL NO. B-43

ORDINANCE NO. 2021-045

AN ORDINANCE OF THE [REDACTED],
ADDING ARTICLE 20 TO CHAPTER 10 OF THE [REDACTED]
MUNICIPAL CODE, PROHIBITING SMOKING IN AND
AROUND MULTIUNIT RENTAL PROPERTIES

WHEREAS, tobacco use causes death and disease and continues to be an urgent public health threat; and

WHEREAS, the World Health Organization (WHO) estimates tobacco kills up to half of its users, and can cause disease in nearly all organs of the body; and

WHEREAS, the estimated damage attributable to smoking and exposure to secondhand smoke in the United States is nearly \$300 billion annually; and

WHEREAS, tobacco use is the number one cause of preventable death in California, and an estimated 40,000 California adults die from smoking annually; and

WHEREAS, secondhand smoke has repeatedly been identified as a health hazard, and the American Heart Association and American Lung Association recommend all adults and children be protected from secondhand smoke in multiunit housing; and

WHEREAS, exposure to secondhand smoke causes death and disease, and secondhand smoke was responsible for an estimated 34,000 heart disease-related and 7,300 lung cancer-related deaths among adult nonsmokers each year during 2005-2009 in the United States; and

WHEREAS, electronic smoking device aerosol may be considered a health hazard, as research has found at least twelve chemicals in electronic smoking device

aerosol known to the State of California to cause cancer, birth defects, or other reproductive harm, such as formaldehyde, acetaldehyde, lead, nickel, chromium, arsenic, and toluene; and

WHEREAS, evidence continues to build that exposure to electronic smoking device aerosol, including secondhand exposure, has immediate impacts on the human respiratory and cardiovascular systems, and poses a risk to human health.

THE COUNCIL OF [REDACTED] DOES ORDAIN AS FOLLOWS:

SECTION 1. Article 20 is added to Chapter 10 of the [REDACTED] to read:

ARTICLE 20

PROHIBITION ON SMOKING IN AND AROUND MULTIUNIT RENTAL PROPERTIES

Section	10-2001	Definitions.
	10-2002.	Smoking Restrictions.
	10-2003.	Required and Implied Lease Terms for all new and Existing Units in Multiunit Rental Properties.
	10-2004.	Requirements for Rental Properties.
	10-2005.	Nuisance.
	10-2006.	Penalties and Enforcement.
	10-2007.	Construction, Severability.

SECTION 10-2001. DEFINITIONS.

(a) "Common Area" means every area of a multiunit rental property that residents of more than one unit are entitled to enter or use, including, but not limited to, halls, pathways, lobbies, courtyards, elevators, stairs, community rooms, playgrounds, gym facilities, swimming pools, parking garages, parking lots, grassy or landscaped areas, restrooms, laundry rooms, cooking areas, and eating areas.



(b) "Electronic smoking device" means any device that may be used to deliver any aerosolized or vaporized substance to the person inhaling from the device, including, but not limited to, an e-cigarette, e-cigar, vape pen, or e-hookah.

(c) "Enclosed area" means all space between a floor and a ceiling that is bounded by walls, doorways, or windows, whether open or closed, covering more than 50% of the combined surface area of the vertical planes constituting the perimeter of the area. A wall includes any retractable divider, garage door, or other physical barrier, whether temporary or permanent.

(d) "Exclusive Use Outdoor Area" means an area accessible only by the occupant of a unit, such as a private balcony, deck, porch, or patio.

(e) "Landlord" means any person or agent of a person who owns, manages, or is otherwise legally responsible for a unit in a multiunit rental property that is leased to a residential tenant. For purposes of this ordinance, a tenant who sublets their unit is not a landlord.

(f) "Multiunit rental property" means residential property containing two or more rental units where the majority of the units, whether rental or not, share at least one common wall with an adjacent unit.

(g) "Nonsmoking Area" means any area in which smoking is prohibited by:

- (1) This Ordinance or other law; and



(2) binding agreement relating to ownership, occupancy, or use of rental property; or

(3) a person with legal control over the area.

(h) "Person" means any natural person, partnership, cooperative association, corporation, personal representative, receiver, trustee, assignee, or any other legal entity, including government agencies.

(i) "Smoking" means:

(1) Inhaling, exhaling, or burning, any tobacco, nicotine, cannabis, or plant product, whether natural or synthetic; and

(2) carrying any lighted, heated, or activated tobacco, nicotine, or marijuana, or plant product, whether natural or synthetic, intended for inhalation; or

(3) using an "electronic smoking device."

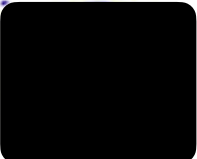
(j) "Unit" means a residential rental unit in a multiunit rental property, excluding any associated exclusive use outdoor area.

SECTION 10-2002. **SMOKING RESTRICTIONS.**

(a) Effective January 1, 2022, smoking is prohibited anywhere on the premises of a multiunit rental property, including units, common areas, and other outdoor areas.

(b) Notwithstanding subsection (a), smoking is permitted in designated smoking areas if they meet the following conditions:

(1) It is an exclusive use outdoor area; or



(2) It is an unenclosed enclosed area at least 20 feet from any:

(i) Outdoor recreation area such as a tennis court, swimming pool, or picnic area; or

(ii) Outdoor area primarily used by children such as a playground; or

(iii) Doorway, entryway into a unit or common area, ventilation system, window, or air conditioner unit.

(3) Designated smoking areas other than exclusive use outdoor areas must have a clearly marked perimeter, and be identified by conspicuous signs.

(c) No person with legal control over any nonsmoking area of a multiunit rental property shall permit smoking in the nonsmoking area, except as provided in subsection (b).

(d) No person with legal control over a common area in which smoking is prohibited by this Ordinance or other law shall permit the presence of ashtrays, ashcans, or other receptacles designed for or primarily used for disposal of smoking waste within the area.

SECTION 10-2003. REQUIRED AND IMPLIED LEASE TERMS FOR ALL NEW AND EXISTING UNITS IN MULTIUNIT RENTAL PROPERTIES.

(a) After the effective date of this Ordinance, every lease or other rental agreement for the occupancy of a unit in a multiunit rental property entered into, renewed, or continued month to month shall prohibit smoking



as required by this Ordinance. The City shall provide a form to be attached to the lease and incorporated therein containing a copy of this Ordinance and setting forth the following conditions:

(1) A clause providing that as of January 1, 2022, it is a material breach of the agreement to smoke or allow smoking:

(i) In the unit, excluding exclusive use outdoor areas; and

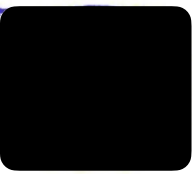
(ii) In any common area of the multiunit rental property other than a designated smoking area.

(2) A clause providing that it is a material breach of the agreement for tenant to violate any law regulating smoking while anywhere on the property, or to allow any other person subject to the control of the tenant to engage in such behavior.

(3) A clause expressly conveying third-party beneficiary status to all occupants of the multiunit rental property as to the smoking provisions of the lease or other rental agreement.

(b) Whether or not a landlord complies with subsection (a) above, the clauses require by those subsections shall be implied and incorporated by law into every agreement to which subsection (a) applies, as well as to existing leases in effect, as of January 1, 2022.

(c) A tenant who breaches or allows any other person subject to control of the tenant to breach, a smoking provision of a lease or other rental agreement for the occupancy of a unit in a multiunit rental property shall be



liable for the breach to (1) the landlord; and (2) any occupant of the multiunit rental property who is exposed to smoke or who suffers damage as a result of the breach. This Ordinance does not create a private right of action for a tenant against a landlord for any damages the tenant may suffer due to another tenant's breach of any smoking provision in a lease or other rental agreement, so long as the landlord has fully complied with the terms of this Ordinance.

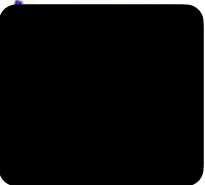
(d) Failure to enforce any smoking provision required by this Ordinance shall not affect the right to enforce such provision in the future, nor shall a waiver of any breach constitute a waiver of any subsequent breach or a waiver of the provision itself.

SECTION 10-2004. REQUIREMENTS FOR RENTAL PROPERTIES. The following requirements apply to multiunit rental properties other than units in a common interest development that are not being rented:

(a) On or before January 1, 2022, every landlord shall deliver to each unit a copy of this Ordinance and a written notice clearly stating:

(1) All units are designated nonsmoking units and smoking is prohibited in a unit, excluding any exclusive use outdoor areas, as of January 1, 2022; and

(2) Smoking in all common areas or outdoor areas, except for specifically designated smoking areas, is a violation of this Ordinance as of January 1, 2022.



(b) As of the effective date, every landlord shall provide prospective tenants with written notice clearly stating that:

(1) Smoking is prohibited in units, excluding any exclusive use outdoor area, as of January 1, 2022; and

(2) Smoking is prohibited in all common areas and outdoor areas, except for specifically designated smoking areas, as of January 1, 2022.

(c) The city shall prepare a form which landlords may use to comply with sections (a) and (b) above.

(d) As of January 1, 2022, the person, or persons with legal control over common areas shall post and maintain clear and unambiguous "No Smoking" signs at entrances and exits, in common areas, and in conspicuous places adjoining the property grounds. In addition, as of January 1, 2022, the person, or persons with legal control over the multiunit rental property shall post and maintain signs in sufficient numbers and locations in the multiunit rental property to indicate that smoking is prohibited in all units. The absence of signs shall not be a defense to a violation of any provision of this Ordinance. "No Smoking" signs are not required inside or on doorways of units. This subsection (c) shall not apply to multiunit rental properties with three or fewer units.

(e) Landlords with knowledge of violations shall take reasonable steps to investigate and enforce the regulations, including a written notice to the resident of the landlord's knowledge of the violation, a request to



cease the violation, and the course of action to be taken if the violation is not corrected.

SECTION 10-2005. NUISANCE.

(a) The provisions of this Ordinance shall be liberally construed to protect the public health to the maximum effect possible. Except as otherwise stated herein, nothing in this Ordinance shall be interpreted to limit any person's legal rights in nuisance, trespass, property damage, and personal injury or other legal or equitable principles.

(b) Any violation of this Ordinance is hereby declared to be a public nuisance.

(c) Nonconsensual exposure to smoke from smoking occurring or drifting into residential property is a nuisance.

SECTION 10-2007. PENALTIES AND ENFORCEMENT.

(a) The remedies provided by this Ordinance are cumulative and in addition to any other remedies available at law or in equity.

(b) Every responsible party owning, occupying, renting, possessing, or having charge or control over a multifamily unit is required to manage and control that unit in a manner so as not to violate the provisions of this Ordinance, and to supervise anyone using or occupying the property, with or without consent of the owner, consistent with this Ordinance. Every responsible party shall be jointly and severally liable for violations thereof regardless of any contract or agreement among them or with any third party regarding the property.



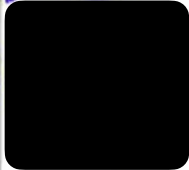
(c) Any person violating the provisions of this Ordinance may be guilty of an infraction. The city may, at its discretion, issue an administrative citation for any violation of this ordinance. In the alternative, the city may, at its discretion, issue community service as an alternative to a fine. The penalty to be assessed for each violation shall be as follows:

- (1) First violation, \$250.
- (2) Second violation within one year of the first violation, \$500
- (3) Third and each subsequent violation within a year of the first violation, \$1,000.

Any person receiving an administrative citation for violation of this article shall have the right to appeal pursuant to Article 4, chapter 1 of this code. In addition, the City Attorney may institute a civil action to ensure compliance with this Ordinance, including an action for injunctive relief and/or to recover damages and attorney fees and costs incurred as a result of any violation.

(d) No person shall intimidate, harass, or otherwise retaliate against any person who seeks compliance with this Ordinance. Residents of the multiunit rental property in violation of this subsection may be subject to community service as an alternative to a civil fine.

(e) Any person may bring a civil action to enforce this Ordinance to prevent future violations and may sue to recover actual or statutory damages, including court costs, and attorney's fees. However, this



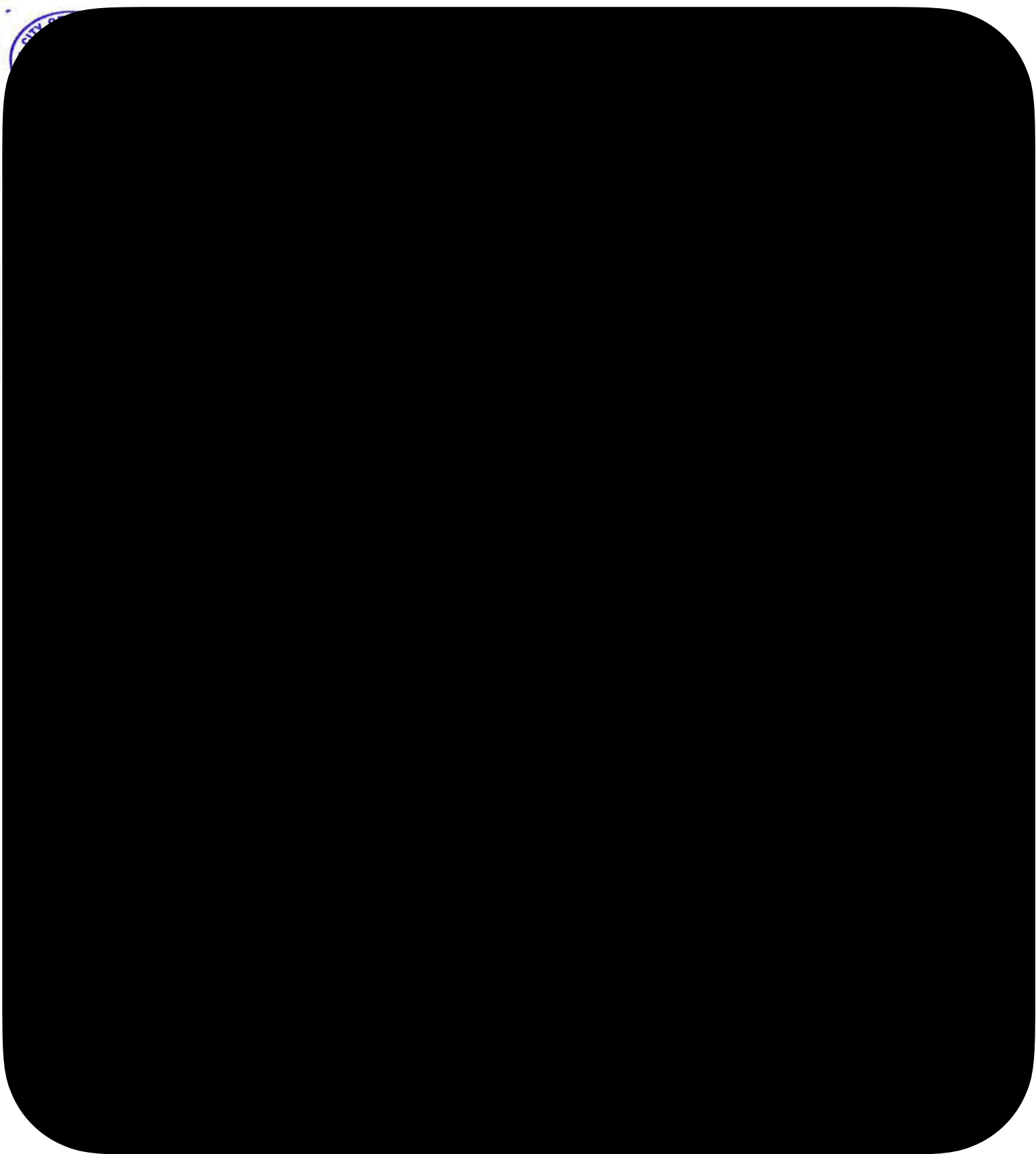
Ordinance does not create a private right of action for a tenant against a landlord for any damages the tenant may suffer due to another tenant's breach of any smoking provision in a lease or other rental agreement, so long as the landlord has fully complied with the terms of this Ordinance.

(f) Violations of this ordinance may be reported to the city via the city's internet or app based reporting platform such as  or via telephone to the city's Code Enforcement Department. The city shall ensure these resources are available for reporting as of January 1, 2022.

SECTION 10-2007. CONSTRUCTION, SEVERABILITY. It is the intent of the city to supplement applicable state and federal law and not to duplicate or contradict such law and this ordinance shall be construed consistently with that intention. If any provision of this article is held to be unconstitutional or otherwise invalid by a court of competent jurisdiction, such invalidity shall not affect any other provisions of this ordinance.

SECTION 2. This ordinance shall become effective and in full force and effect at 12:01 a.m. on the thirty-first day after its final passage.

* * * * *





CAL FIRE - OFFICE OF THE STATE FIRE MARSHAL

INFORMATION BULLETIN 24-001

Issued: January 23, 2024

Updated from IB 23-003

Lithium-Ion Battery Safety

BACKGROUND

Issued: January 23, 2024 Updated from IB 23-003 Lithium-ion rechargeable batteries are commonly used in home electronics such as phones, batteries are small and powerful, but when used incorrectly, they can overheat, catch fire, or explode. Fire agencies across California continue to respond to fires caused by lithium-ion batteries.

REQUIREMENTS FOR STORAGE OF ELECTRONIC BIKES, SCOOTERS, AND OTHER ELECTRONIC MICROMOBILITY DEVICES IN RENTAL HOUSING

California Civil Code (CIV) Section 1940.41 defines a “Personal micro-mobility device” as device with both of the following characteristics:

- (A) It is powered by the physical exertion of the rider or an electric motor.
- (B) It is designed to transport one individual, or one adult accompanied by up to three minors.

CIV 1940.41 that takes effect January 1, 2024, the new law affects storage of e-bikes, e-scooters, and other *personal micro-mobility devices* stored in a rental housing unit. The owner may prohibit the tenant from charging a device in the unit if the device does not meet the standards listed below. It allows for storage and charging of up to one e-bike, e-scooter, or other *personal micro-mobility device* in the rental unit for each person occupying the unit if the device meets one of the following:

A. Complies with the following safety standards:

For e-bikes, UL 2849, the Standard for Electrical Systems for E-bikes, as recognized by the United States Consumer Product Safety Commission, or EN 15194, the European Standard for electrically powered assisted cycles (EPAC Bicycles).

For e-scooters, UL 2272, the Standard for Electrical Systems for Personal E-Mobility Devices, as recognized by the United States Consumer Product Safety Commission, or EN 17128, the European Standard for personal light electric vehicles (PLEV).

B. Is insured by the tenant under an insurance policy covering storage of the device within the tenant’s dwelling unit.

Issued: January 23, 2024



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SAFETY TIPS

- Purchase and use devices that are listed by standards UL 2849, EN 15194, UL 2272, EN 17128 or a qualified testing laboratory.
- Always follow the manufacturer's instructions.
- Only use the battery that is designed for the device.
- Put batteries in the device the right way.
- Only use the charging cord that came with the device.
- Do not charge a device under your pillow, on your bed, or on a couch.
- Do not keep charging the device or device battery after it is fully charged.
- Plug directly into a wall electrical outlet for charging.
- Keep batteries at room temperature and away from heat or direct sunlight. Do not charge them at temperatures below 32°F (0°C) or above 105°F (40°C).
- Store batteries away from anything that can catch fire.
- Do not charge a device while sleeping.
- Do not charge a device near your primary exit.

STOP OPERATION OF THE DEVICE OR CHARGING THE BATTERY IF:

- They emit an unusual smell,
- Develop heat,
- Change shape/geometry,
- Behave abnormally, or
- Develop a leak or make an odd noise.

If any of the above happens and you feel in danger, call 9-1-1. If safe, move the device away from anything that can catch fire.

BATTERY DISPOSAL

- Do not put lithium-ion batteries in the trash.
- Recycling is always the best option.
- Take them to a battery recycling location or contact your community for disposal instructions.
- Do not put discarded batteries in piles.

FIRE EXTINGUISHER

- Lithium-ion batteries are considered a Class B fire, so a standard ABC or drychemical fire extinguisher should be used.



CAL FIRE - OFFICE OF THE STATE FIRE MARSHAL

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Use approved batteries

Only purchase and use devices that have a reputable testing agency mark such as UL. These show that the product has been safety tested.



Use supplied charger

Follow the manufacturer's instructions for charging and storage. Use the correct cord and power adapter made specifically for the device.



Use the wall outlet

Always plug directly into a wall electrical outlet for charging.



Make sure you can get out

Never block your primary way in or out of a room/apartment.



Store in open space

Batteries should be stored away from anything flammable (ex. pillow, bed, or couch).



No overnight charging

Do not leave devices unattended while charging or charge them overnight.



Keep away from heat

Keep batteries and devices at room temperature. Keep away from direct sunlight and any heat source such as a radiator.



Dispose of batteries safely

Do not place lithium-ion batteries in a trash or recycling bin.



Use baterías aprobadas

Sólo compre y use dispositivos que tengan una marca de agencia de pruebas acreditada, como UL. Estos muestran que el producto ha sido probado en seguridad.



Utilice el cargador suministrado

Siga las instrucciones del fabricante para la carga y el almacenamiento. Utilice el cable y el adaptador de corriente correcto fabricado específicamente para el dispositivo.



Use el tomacorriente de pared

Siempre conecte directamente a un tomacorriente de pared para cargar.



Asegúrate de poder salir

Nunca bloquee su entrada o salida principal de una habitación/apartamento.



Almacenar en espacio abierto

Las baterías deben almacenarse lejos de cualquier objeto inflamable (p. ej., almohadas, camas o sofás).



No Cargar durante la noche

No deje los dispositivos desatendidos mientras se cargan, ni los deje cargando durante la noche.



Manténgala alejada del calor

Mantenga las baterías y los dispositivos a temperatura ambiente. Mantener alejado de la luz solar directa y de cualquier fuente de calor como un radiador.



Botar las baterías de forma segura

No coloque las baterías de Iones de Litio en un contenedor de basura o de reciclaje.

Offer of Positive Rental Payment Information Reporting Addendum

This document is an Addendum and is part of the Rental /Lease Agreement, dated [REDACTED] between [REDACTED] (Owner/Agent) and [REDACTED] (Resident) for the rental unit located at [REDACTED] Unit (if applicable) [REDACTED].

Notice of Offer of Positive Rental Payment Information Reporting, Pursuant to California Civil Code Section 1954.07, Resident is hereby notified that Resident has the option of having the Resident's positive rental payment information reported to at least one nationwide consumer reporting agency. "Positive rental payment information" is defined as information regarding a resident's complete, timely payments of rent and does not include an instance in which a resident did not completely or timely make a rental payment. Pursuant to California Civil Code Section 1954.07(d), an Election of Positive Rental Payment Information Reporting form with further information regarding this offer and a signature block to sign to opt into positive rental payment information reporting is attached to this Addendum. If there is more than one (1) Resident listed above, each individual Resident must make their own written election using the attached Election of Positive Rental Payment Information Reporting form to have their positive rental Payment information reported. If you are in an affordable unit, not including the Housing Choice Voucher program (Section 8) this does not apply, and you will not be able to use the Election of Positive Rental Payment Information Reporting form to opt in.

Except as modified in this Addendum, the terms of the Agreement, and all attachments to the Agreement are and shall remain the same and in full force and effect.

The undersigned Resident(s) acknowledge(s) having read and understood the foregoing.

[REDACTED]	10/21/2025		
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	Resident	Date
Resident	Date	[REDACTED]	Date



Election of Positive Rental Payment Information Reporting

This Election of Positive Rental Payment Information Reporting is for the undersigned Resident of the rental unit located at [REDACTED] Unit (if applicable) [REDACTED].

Pursuant to California Civil Code Section 1954.07, Resident has the option of having the Resident's positive rental payment information reported to at least one nationwide consumer reporting agency. "Positive rental payment information" is defined as information regarding a resident's complete, timely payments of rent and does not include an instance in which a resident did not completely or timely make a rental payment. Pursuant to California Civil Code Section 1954.07(d), Resident is hereby notified that:

- (1) It is your choice whether to have your positive rental payment information reported. It is optional and not required.
- (2) Your positive rental payment information will be reported to **Equifax, Experian and Transunion** consumer reporting agencies.
- (3) There will be a monthly fee of **\$1.00** for the reporting service that will be payable to [REDACTED].

This amount is no more than the actual cost to Owner/Agent to provide the service and must not exceed \$10.

- (4) If you choose to have your positive rental payment information reported, sign below and return this form by one of the following methods:

First-Class United States Mail: Mail this form to [REDACTED] at [REDACTED].

Email to the following email address: [REDACTED].

- (5) You may opt into positive rental payment information reporting at any time following the initial offer by Owner/Agent.
- (6) You may elect to stop positive rental payment information reporting at any time, but you will not be able to resume positive rental payment information reporting for at least six (6) months after the election to opt out.
- (7) You may opt out of positive rental payment information reporting at any time by emailing your request to the following email address [REDACTED].

Resident's Acceptance of Offer of Positive Rental Payment Information Reporting

The undersigned Resident acknowledges having read and understood the foregoing and understands that by signing and dating below the Resident is opting into positive rental payment information reporting.

Printed Name of Resident

Signature of Resident

Date

